THE REPUBLIC OF UGANDA

COLLECTIVE BARGAINING AGREEMENT

BETWEEN

THE UGANDA CIVIL AVIATION AUTHORITY

AND

AMALGAMATED TRANSPORT AND GENERAL WORKERS' UNION

REVISED 2022

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THE COLLECTIVE BARGAINING AND RECOGNITION AGREEMENT BETWEEN THE UGANDA CIVIL AVIATION AUTHORITY AND THE AMALGAMATED TRANSPORT AND GENERAL WORKERS UNION ON THE TERMS AND CONDITIONS OF SERVICE FOR EMPLOYEES OF THE UGANDA CIVIL AVIATION AUTHORITY

PART I - PRELIMINARY

ARTICLE 1 - CITATION

This Agreement shall be called the Collective Bargaining Agreement, 2022.

ARTICLE 2 - APPLICATION OF THE AGREEMENT

This Agreement shall apply to the Authority, the Union, and all Employees of the Authority.

ARTICLE 3 - ENTRY INTO FORCE OF THE AGREEMENT

This Agreement shall replace the previous Recognition Agreement executed on 05 February 1996 and the Collective Bargaining Agreement executed on 01 July 2013 and shall come into force from the _____ day of _____ 2022, or on such other date as the Parties shall agree.

ARTICLE 4 - MODIFICATION OF AGREEMENT

The Authority and the Union may by consent modify, cancel or amend any or all of the Articles to this Agreement.

ARTICLE 5 - INTERPRETATIONS AND DEFINITIONS

In this Agreement, unless the context otherwise requires –

"**Abscondment**" means or is deemed to have occurred, when an employee has been absent from work for a time of 14 consecutive working days without authorization from the immediate supervisor.

"**Act**" means the Civil Aviation Authority Act Cap. 354, Laws of Uganda or any amendments thereto;

"**Agreement**" means the Collective Bargaining Agreement, 2013 between the Authority and Union on the Terms and Conditions of Service for Unionized Employees of the Authority;

"**Authority**" means the Civil Aviation Authority established under the Act;

"**Board"** means the Board of Directors of the Authority, appointed under the Act;

"**Central Negotiating Council (CNC)"** means a council comprising representatives of Management and the Union established under Article 4 of this Agreement;

"**Chairman**" means the Chairman of the CNC;

"**Chairman of the Board**" means the Chairman of the UCAA Board of Directors.

"**Chief Shop Steward**" means a person elected to head the Shop Stewards' Council;

"**Competent Authority**" means, in relation to exercise of any power under this Agreement, the authorities specified in Schedule No. 10 to this Agreement;

"**Compulsory Retirement**" means cessation by an Employee to offer his or her service to the Authority upon the attainment of the age of sixty (60);

"**Consolidated Salary**" means remuneration given to employees without specifically stating any breakdown.

"**Continuous Service**" means an Employee's period of uninterrupted years in service with the Authority, as defined under this Agreement;

"**Contract of Service**" means any contract, whether oral or in writing, whether expressed or implied where a person agrees in return for remuneration, to work for the Authority under such terms and conditions specified under the contract;

"**Contract of Employment**" This is an employee engaged for a specific period of time under terms provided for in the employment contract. A contract employee shall not indefinitely occupy an established Authority position.

"**Defamation**" means communication verbal (slander) or written (libel) aimed at tarnishing the image of the authority or individuals in the Authority;

"**Departmental Director**" means a Director responsible for any of the following Departments or Directorates:

a) Airports and Aviation Security,

b) Air Navigation Services,

c) Finance,

d) Human Resource and Administration,

e) Safety, Security and Economic Regulation,

f) Any other Directorate that may be created from time to time.

"**Designated Medical Examiner**" means a medical practitioner designated from time to time by the Authority for purposes of certifying medical requirements or carrying out medical examinations required under this Agreement;

"**Employee**" means any person who has entered into a contract of service with the Authority under such terms and conditions as specified under the contract;

"Extra hours" accrue when working hours exceed the normal maximum number of working hours per day (08 for office hours and 10 for shift work hours) or per week (48 for office hours and 56 shift work hours) workers within Levels 9 and above;

"**Unionized Employee**" means an Employee who is a registered member of the Union.

"**Long Service Award**" shall have the meaning ascribed to it under Article 73.2.

"**Management**" means the Management Committee comprising the Director General, Deputy Director General, Corporation Secretary, Departmental Directors and all heads of department;

"Director General" means the Director General and Chief Executive Officer of the Authority;

"Minister" means the Minister for the time being responsible for Civil Aviation in Uganda;

"**Month**" means a month according to the Gregorian calendar;

"**Overtime**" means the time worked in excess of the statutory maximum working hours per day (08 for office hours and 10 shift work hours) or per week (48 for office hours and 56 shift work hours) workers within Levels 1-8;

"**Pay Period**" means the relevant period, whether of the day, week, fortnight or month by reference to which an employee is entitled to receive his or her wages;

"**Parties**" means parties to this Agreement being the Authority and the Union;

"**Probation**" means a period during which a Probationer is observed to determine if they are suitable for the position;

"**Probationer**" means a person who is being observed in a position to determine if they are suitable before confirmation;

"**Provident Fund**" means the Civil Aviation Authority Staff Provident Fund, a contributory retirement fund created and subscribed to by willing and consenting Employees;

"**Redundancy**" is where an Employee's position ceases to exist or be of relevance to the Authority due to restructuring, reorganization or retrenchment;

"**Retirement on medical grounds**" is where Authority may retire an Employee due to medical unfitness or other incapacity resulting in failure by the Employee to carry out his or her duties, stipulated under this Agreement;

"**Service Gratuity**" shall have the meaning ascribed to it under Article 73.1;

"Service Charge" means the amount of money paid monthly by a non-union member who benefits from union

activities and negotiations;

"**Shop Steward**" means an elected Unionized Employees' representative;

"**Shop Stewards' Council**" means a council comprising of all the shop stewards in the Authority;

"**Subscription**" means the amount of money paid monthly as membership fee by a union member;

"**Summary Dismissal**" or "**Summary Termination**" means dismissal of an Employee or termination of a Contract of Service by the Authority without notice, due to grave misconduct by the Employee;

"**Union**" Shall mean the Amalgamated Transport and General Workers Union recognized by the Authority as representing UCAA Employees or any other lawful successor thereof;

"**Voluntary Retirement**" is where an Employee who completes fifteen (15) or more years of continuous service for the Authority and voluntarily wishes to terminate his/her services with the Authority;

"**Wages**" means remuneration or earnings, however, designated or calculated, capable of being expressed in terms of money which are payable to an Employee under a contract of service, and excludes any contributions payable by the Authority in respect of an employee's insurance, medical care, welfare, education, training, invalidity, retirement pension, post - service gratuity or severance allowance;

PART *II* - RECOGNITION OF THE UNION AND NEGOTIATING PROCEDURE

ARTICLE 6 - RECOGNITION OF THE UNION BY THE AUTHORITY

6.1 The Authority accords full recognition to the Union as a properly constituted representative body of the interests of the Employees of the Authority -

(a) in matters concerning terms and conditions of service;

(b) in consultations and negotiations on the general principles governing but not limited to rates of pay, overtime, hours of work, wages or salaries, transport and transport allowance, housing and housing allowance, leave, collection of Union dues, medical, retirement, redundancy, termination of employment, productivity, improvement and maintenance of efficiency; and

(c) in other matters as may from time to time be agreed upon by the Parties.

6.2 The Union shall present the names of all the officials of the Union and the positions held by them to the Authority whenever elections are carried out in accordance with the Union's constitution and shall advise the Authority about any changes therein as and when they occur.

6.3 The Authority undertakes to extend to the officials or representatives of the Union, such facilities as are within its means, which are necessary to enable them to conduct their business effectively.

6.4 The Union guarantees that its members will not engage in activities on behalf of the Union during working hours, except with the permission of their superior officers, provided that such permission shall not be unreasonably withheld.

6.5 The Parties agree that no employee shall be compelled to become a member of the Union nor shall an Employee be penalized on account of his or her membership of the Union.

6.6 The Parties recognize their mutual interest in promoting a good relationship between themselves and agree to the desirability of productivity and maintaining goodwill in the industry and will co-operate with each other towards achieving this.

6. 7 The Authority recognizes that the Union has a role to play in Disciplinary matters provided that the nature of such a role shall be as agreed upon between the Parties. In addition to the above, the Authority shall have an ad-hoc disciplinary committee established in accordance with this Agreement, to handle issues of disciplinary nature within the Authority.

6.8 The Authority recognizes that employees who do not wish to be members of the Union and its activities, but enjoy benefits negotiated by the Union shall pay a monthly service charge as agreed by both parties but does not violate the National laws. The service charge shall be deducted monthly from their emoluments.

SHOP STEWARDS

6.9. Recognition of Shop Stewards

The Authority agrees to recognize Shop Stewards at its premises to represent employees who are members of the Union and to make representations on their behalf, in accordance with the law and the provisions of this agreement.

6.10 Rights and Duties of Shop Stewards

The elected Shop Stewards shall be accorded reasonable access to members as provided for in this agreement and undertakes to discuss with them matters relating to the employees of the Authority. The Union recognizes that elected Shop Stewards are like any other permanent employees, bound by rules and regulations prevailing from time to time in the Authority. Their rights should be exercised as laid down in the Laws of Uganda, the Authority regulations, this Agreement and any other Agreement entered into by the two parties to this Agreement.

Shop Stewards will bring to the notice of their direct superior(s) in their Constituency, any matter concerning a member and will carry out their duties without unreasonably or unnecessarily interfering with or disrupting their own or other employees' work.

The Authority agrees that for the purpose of carrying out their duties, Shop Stewards and accredited Union officials may meet as per their schedule or whenever need arises.

6.11 Victimization

The Authority undertakes that no Shop Steward shall be victimized as a result of his/her exercising his/her right as a Shop Steward in good faith and in pursuance of his/her duties as a Shop Steward and in accordance with this Agreement. The Authority will not victimise any employee by virtue of his/her Union membership.

6.12 Notice Boards

The Authority shall allow the Union the use of Authority notice boards for the display of notices by the Union, provided that such notices shall have been submitted to and approved by the Authority, prior to being displayed and the Authority agrees that it shall not unreasonably withhold such consent.

ARTICLE 7 - CENTRAL NEGOTIATING COUNCIL

7.1 Establishment of the Central Negotiating Council

a) For efficient conduct of their affairs and in order to maintain good Industrial Relations, the Authority and the Union shall establish a **CENTRAL NEGOTIATING COUNCIL** (CNC) for purposes of discussing and settling matters of mutual concern.

b) CNC shall consist of ten members, each party being represented by five (5) members, or such other number as the Parties may from time to time agree. The quorum of CNC shall be the Chairperson, a mandated Union spokesperson from ATGWU and a mandated Management spokesperson (DHRA or representative) together with at least two (2) members from either party. Other persons, not being members of CNC, may attend as observers by mutual consent of both Parties.

c) An independent Chairperson agreed upon by both Parties shall chair the CNC. CNC shall have a Secretary and Deputy Secretary mutually appointed amongst the Union and Management representatives.

d) Alternate Chairperson

There shall be an alternate Chairperson agreed upon by both parties who shall chair the CNC in absence of the chairperson.

e) CNC shall be the highest negotiating body between the Parties, and shall regulate its procedure for Meetings.

7.2 Functions of the Central Negotiating Council

CNC shall act as machinery through which the Authority shall negotiate with the Union, and shall in particular discuss and determine any questions affecting employees as shall be referred to it by either the Authority or the Union in connection with:

a) Terms and Conditions of Service;

b) Productivity, improvement and maintenance of efficiency of office and working conditions, re-organisation and methods of work, including safety and welfare arrangements; or

c) Any other matters, of mutual interest to the Parties involving UCAA Employees.

PART III - CLASSIFICATION OF POSITIONS, APPOINTMENTS, PROBATION AND PROMOTION

ARTICLE 8 - STAFFING REQUIREMENTS

8.1 The governing body of the Authority shall be the Board, which shall determine and create staff positions, as empowered under the Act Cap 354.

ARTICLE 9 - FILLING OF POSITIONS

9.1 Positions may be filled through promotions arising out of Performance Appraisal as provided for by Article. 22 of this Agreement.

9.2 The Board is the competent Authority for determining the appropriate recruitment process for all positions in the Authority. The filling of vacancies in the Authority shall be determined using any of the following processes.

a) Appraisal/Promotion.
b) Internal Advert.
c) External Advert

The Board reserves the right/discretion to determine the appropriate recruitment method as they deem fit.

9.3 Where necessary, recruitment will be undertaken through head hunting. However head hunting shall be resorted to in compelling circumstances where special skills are required in the Authority.

9.3 A position that has been internally or externally advertised shall be filled by requisite qualifications stipulated in Article 13, however internal applicants shall also be considered for equal or higher to their present positions not withstanding that the applicant is willing to take up a lower position.

ARTICLE 10 - GRADING AND CLASSIFICATION OF POSITIONS

The positions in the Authority shall be grouped as follows:

And as shall be amended from time to time.

NO.	CATEGORY	LORIMAK JUNE 2006 TO JUNE 2014 SALARY GRADES	OLD CATEGORY OF TITLES	NEW STRUCTURE EFFECTIVE JULY 2014 SALARY GRADES	NEW CATEGORY OF TITLES
A	**Top Management**	Exec 1 to 16	MD, DMD, CS, Departmental Directors and General Manager	Exec 1 to G14	DG, DDG, CS, Departmental Directors and General Manager.
B	**Senior Management**	L15 to L13	Managers, Principals, Chiefs and equivalents	G13 to G12	Managers, Principals, Chiefs and equivalents
C	**Middle Management**	L12 to L10	Seniors, Officers, Assistant Officers and equivalents	G11 to G10	Seniors, Officers and equivalents
D	**Junior Management**	L9 to L7	Supervisors & equivalents	G9	Assistant Officers, Supervisors & equivalents
E	**Skilled Staff**	L6 to L5	Assistants	G8 to G6	Assistants & equivalents
F	**Semi-skilled staff**	L4 to L3	Other staff	G5 to G4	Other staff
G	**Unskilled staff**	L3 to L1	Other staff	G3 to G1	Other staff

ARTICLE 11 - APPOINTMENTS

All appointments by the Authority shall be in writing in form of a Contract of Employment indicating the terms and conditions of service of employment.

ARTICLE 12 - CATEGORIES OF EMPLOYMENT

The following shall be the categories of employment into the service of the Authority:

a) Permanent Employee

This is an employee who has been hired for a position without a pre-determined time limit. He/she will be deemed to become a permanent employee after confirmation in service by the Authority. All permanent staff shall be appointed to established positions.

b) Contract Employee

i) Fixed term contractual appointment

This is where an employee is appointed for a fixed period, this appointment maybe for the purposes of filling an established executive positions Exec 1 – 3, any other category as may be determined from time to time or any other assignment as may be deemed necessary by the Authority. Such position may be fixed from one (1) – four (4) years renewable

ii) Short term contractual appointment

This refers to the contractual appointment after attaining a mandatory retirement age, in the Employment Act or special assignment as determined and shall be for the period of up to one (1) year

c) Seconded Employee

This is an employee engaged under an agreement between the Authority and his/her principal employer, which the employee shall agree to abide by upon execution. A seconded employee shall fall under the chain of command of the Authority through appropriate channels and subject to the General Terms and Conditions of Service of the Authority. This category shall be subject to control and discipline of the Authority.

d) Casual Employee

This is an employee engaged on a day-to-day basis and paid a daily wage to handle work whose volume or nature would not necessitate permanent employment. This type of employee shall not work for a continuous period exceeding 90 days. When a suitable vacancy comes up within the authority, a casual employee maybe considered for employment subject to meeting hiring requirements or through a performance appraisal system. A casual employee who has been laid off may be re- engaged depending on the need.

e) Temporary Employee

This is an employee engaged under a temporary appointment to handle work in a temporarily vacant position due to leave, sickness or temporary indisposition of the substantive employee where there is no other suitable in-service employee to act. Management can engage a temporary employee to do additional

assignments that arise from time to time for a period not exceeding one year unless renewed. A temporary employee's terms of service shall be specified in his/her instruments of appointment.

ARTICLE 13 - GENERAL CONDITIONS RELATING TO APPOINTMENTS

13.1 A person shall be eligible for appointment to a position in the Authority where that person –

a) is eighteen (18) years old and above, except where such recruitment is for apprenticeship or on a temporally basis and is permissible under the Employment Act and any other applicable laws;

b) is not above mandatory retirement age;

c) meets the academic and other qualification requirements for the position available;

d) is certified medically fit by a designated medical facility, with full regard to Schedule 7(HIV Policy) of this agreement. However, people with disability and depending on suitability of this person for the job shall not be discriminated. Notwithstanding the medical fitness at recruitment, medical checks will be done to determine subsequent suitability for the job. In the event that medical suitability has been lost, the appropriate decision on the person's continuous employment will be taken by the competent Authority;

e) has never been convicted of an offence involving moral turpitude;

f) in the case of a non - citizen of Uganda, such person is duly authorized to work in Uganda, and satisfies all qualification criteria specified in a), b), c), and d) above;

13.2 Medical fitness requirements for various positions will be notified from time to time by the Director responsible for Human Resource and Administration and will determine continued employment as the requirements of the industry prescribe.

13.3 Every Employee shall communicate his or her bio-data to the Directorate for Human Resource and Administration on first appointment, and whenever changes occur.

13.4 Every Employee shall notify the Directorate for Human Resource and Administration about any changes in their official names which may occur as a result of marriage, custom and any other changes provided that legal documentary supporting evidence is tendered.

ARTICLE 14 - COMMENCEMENT OF SERVICE

Service shall be deemed to have commenced on the working day on which an Employee reports for duty following appointment as witnessed by immediate supervisor. However, if such employee reports on duty in the afternoon, he/she will be regarded as having reported on the following day.

ARTICLE 15 - PROBATION

15.1 A newly recruited employee will be required to serve a probation period of Six (6) months before confirmation in the appointment. However, probation may be for a longer period in positions where a trainee is required to undergo ab initio training.

15.2 During the probationary period either party may terminate employment by giving to the other fourteen days' notice, or by payment to the employee of seven days wages in-lieu of notice.

15.3 The Authority may extend the Probation for a further period of not more than Six (6) months.

15.4 In order to assess the performance of a probationer, a system of quarterly appraisal will be adopted.

15.5 No employee shall be required to serve more than one period of probation.

15.6 Without prejudice to the foregoing provisions, the competent Authority may for good cause waive Probation or any part thereof.

ARTICLE 16 - CONFIRMATION

16.1 The Director Human Resource and Administration shall seek evaluation of an employee on probation from the supervisor at least one month before the date of expiry of the probation.

16.2 At the successful completion of Probation, the Authority shall confirm the Probationer at most one (1) month after the date of expiry of the Probation in writing.

16.3 Where the Authority raises no objection or any issues with regard to the confirmation within the seventh (7th) month, the Probationer shall be deemed confirmed in his or her employment and shall

be entitled to all benefits due to a confirmed employee of the Authority with effect from the due date.

ARTICLE 17 - INDUCTION

17.1 A newly recruited employee shall be given an appropriate induction to be followed by on-the-job training, and any other appropriate formal training where this is necessary for satisfactory performance of his/her duties. Such induction and training shall be stipulated under the Authorities training regulations.

17.2 On conclusion of requisite training in Air Traffic Management inclusive both classroom and On-the-Job-Training (OJT), trainees shall be required to attend the Rating Boards for certification.

The procedure and award shall be as follows: -

- **a)** Appointed as Trainee at salary grade 9 on entry into Air Traffic Management or as amended,
- **b)** Aerodrome Rating - Confirmation in service as ATMO at salary grade 10(a) or as amended,
- **c)** Approach Procedural - Still ATMO but graded in band width 10 (b) or as amended.
- **d)** Approach Radar or Area Procedural - Promoted to SATMOs at salary grade 11 or as amended
- **e)** Approach Radar and Area Procedural - Promoted to PATMOs at Salary grade 12 or as amended.

In addition to passing the rating, confirmation, promotions, and notch awards shall take effect from the date of passing the rating.

ARTICLE 18 – TRAINING

All Employees shall be given training as stipulated under the Authority's Training Regulations and Guidelines to enhance safety and security, in aviation industry, as well as skills development.

18.1 The Authority shall draw up a detailed human resource training and development programme for the employees. This programme shall take into consideration promotional and succession requirements and shall be made known to the employees for skills improvement as opposed to acquisition of higher qualification.

18.2. Where an employee undertakes higher studies outside the Authority approved training program, the employee shall upon completion of the course file his/her testimonials with the Director of Human Resource & Administration. In the assessment of Management and the Board where applicable, as

per competent authority indicated in schedule 10, the person who has acquired higher qualifications may be considered for a higher position in the authority where his or her qualifications are suitable:

18.3. The Authority shall provide conducive environment for employees wishing to undertake higher studies in such a way that there is balance between work and studies. However, the interest of the Authority shall take priority over those of the individual not withstanding that they have been enrolled for such training.

ARTICLE 19 – PROMOTION

19.1 All promotions shall be effected on recommendations of the Supervisor, Line/Head of department and departmental Director based on the performance appraisal.

19.2 The appraisal shall be reviewed and commented on by DHRA, DG and where applicable the Board. For avoidance of doubt, promotions, redeployments, and transfers shall not be effective unless approved by the competent authority indicated in schedule 10.

19.3 The decisions of promotion arising out of an appraisal process will be notified to an employee by DHRA.

19.4 The criteria to be considered will among others include:

a) Not less than 70% Level of performance evidenced by documentary proof as indicated by the degree of achievement of targets.

b) Seniority on the job.

c) Attainment of requisite academic or professional qualifications/skills

d) Availability of vacancy.

19.5 Should the Union find it necessary to investigate a complaint arising out of the promotion, the confidential reports pertaining to the promotion exercise shall be availed to the Union on written request.

19.6 Promotions shall only be open to confirmed permanent employees.

19.7 Promotions shall not be retrospective.

19.8 The foregoing provisions shall apply to all categories of staff however for the position of Director General, Deputy Director General and Corporation Secretary recommendations regarding the promotion shall be made by the Board to the Minister. For departmental directors, the Board shall be the appointing Authority, while for the Managers the Board Committee on Human Resource and Administration shall be the appointing Authority. The rest of the staff category shall be as per appraisal and in accordance with schedule 10.

19.9 On promotion to a higher post, the basic pay of an employee in the lower salary scale shall first be raised by one notch increment in the lower scale then re-fixed in the scale applicable to the higher post at the corresponding stage provided that: -

a) If the pay raised is below the minimum of the higher scale, the pay shall be fixed at that minimum.

b) If the pay so raised coincides with the maximum salary notch of the higher scale, the pay shall be fixed at the maximum notch of the higher scale.

ARTICLE 20 - ACTING APPOINTMENTS

The Authority may, in writing, appoint a suitable Employee in the next lower grade within the directorate/department/section or any other relevant unit to act in a position which is vacant or where the substantive holder is away, provided that-

a) Unless under very compelling circumstances, acting appointments shall only be open to confirmed permanent employees of the Authority. This is to also apply to officially seconded staff.

b) Acting appointment to a substantive vacant post shall not be in excess of six (6) months. Under very compelling circumstances however, acting appointments may be extended with justification for another six months maximum, in which case the employee and the Union shall be notified in writing at the beginning of the period.

c) Should an employee continue acting in a substantive vacant higher position for a continuous period of twelve months, he/she shall be appointed to fill the position subject to fulfilment of the requirements thereof.

d) An employee shall be paid an Acting Allowance only when he or she is to act for a minimum period of thirty continuous days which shall be equivalent to 22.5% of employees' monthly salary for categories L1– L12 and 25% for L13 & above.

e) Where the Authority raises no objection to any issues with regard to the acting appointment within the twelfth (12th) month, and circumstances raised in (c) above, the employee shall be deemed confirmed in his or her position and shall be entitled to all benefits due to the position with effect from the thirteenth (13th) month. However if the requirements indicated in C above have been fulfilled while the acting appointment or during the acting appointment such requirements shall be notified to the DHRA who shall cause the acting officer to be evaluated for possible appointment.

f) Acting allowance is not applicable while out of office.

ARTICLE 21 - COMBINED DUTIES ALLOWANCE

a) An employee, who combines his/her usual duties with the duties of another employee of the same job grade or of a lower job grade for a continuous period of thirty (30) days shall be paid a Combined Duties Allowance of 15% of his/her salary.

b) Combined duties shall be assigned to an employee in writing at the beginning of the combined duty period.

c) Combined duties allowance is not applicable while out of office.

ARTICLE 22 –TALENT AND PERFORMANCE MANAGEMENT

The Authority shall employ a talent and performance management system where every employee shall be continuously be assessed for his/her present and potential productivity .The system shall also be used for analysis, identification and support of training and development needs. The Talent and Performance Management shall be aligned and be supportive of the Authority's Strategic Plan as well as its culture.

22.1 The Authority shall establish performance standards for each position, which shall be complied with by the Employee holding the position. The standards shall be made available to all Employees and the Union and shall be the yardstick as outlined in Article 19 above.

22.2 In collaboration with the relevant supervisor, each Head of Department shall review the performance of each employee under him/her at least once a year. Such review shall give enough information *to* enable the Authority to assess the employee's performance in any given period; and where weakness is detected, the immediate supervisor shall discuss with the concerned employee the areas that may

require improvement. For a newly recruited employee there will be quarterly appraisal to be done prior to confirmation.

22.3 For purposes of this exercise, the Authority shall design a form to be duly completed by all concerned parties. The form shall give an employee a chance to make observations concerning his/her job in as far as provision of tools to perform with and other aspects of the job are concerned and to make suggestions for improvement, if any.

22.4 During the discussions of the report with the supervisor the employee shall be made to know his/her ratings and thereafter sign the report certifying that he/she is in agreement or disagreement with the ratings.

22.5 The performance appraisal shall be guided by the Authority's talents and performance management policy as in schedule 11.

PART IV - PAY, ALLOWANCES, INCREMENTS, ADVANCES, LOANS AND DEDUCTIONS

ARTICLE 23 - SALARIES AND WAGES

23.1 Each employee shall receive the rate of pay corresponding to his/her grade as designated by the Authority. In order to avoid any disparity and subject to other applicable pay consideration in salary the Authority undertakes to apply the principle of equal pay for work of equal value. Other than employees in executive 1 & 2, the salaries and wages of other staff shall be determined by the Board including pecuniary and non pecuniary benefits.

23.2 The Authority and the Union shall review salaries, wages and allowances from time to time.

23.3 Following an agreement, both parties shall, at a CNC meeting, sign the agreed changes in remuneration (salary/wages and allowances) *as part* of this agreement. Once such changes have been made by both parties, the changes shall amend the agreement.

23.4 The Authority shall, by the 28th day of each calendar month pay in Uganda shillings through the bank account of every employee and if the 28th day falls on the weekend or public holidays the salary shall be paid before the 28th. Payment of salary in December shall be paid before the Christmas break.

23.5 Employee performance Incentive /Bonus

At the end of every calendar year, the Authority may pay to all qualifying staff a bonus commonly known as the 13th Cheque which will be determined by the Board from time to time.

ARTICLE 24 - PAY STATEMENT OR SLIP

Every Employee shall receive with each payment of his or her wages an itemized pay statement from the Authority, in writing which shall set out -

a) The Gross/Consolidated Salary due to the Employee;

b) The amount of every deduction from the Employee's Wages during that Pay Period and the purpose for which such deduction was made;

c) The Employee's net Wages payable at the end of that Pay Period.

ARTICLE 25 - DEDUCTIONS

25.1 Deductions from monthly Wages shall where applicable, be made with regard to: -

a) Statutory deductions;

b) Loans or advance given to the Employee by the Authority;

c) Union dues/ service charge.

d) Any payments made by the Authority on behalf of the Employee with the consent of the Employee

e) Recovery from loss occasioned to the Authority by an Employee with the consent of the Employee;

f) Deduction accruing from a lawful Court Order;

g) A standing order by an Employee to the Authority, authorizing a deduction.

25.2 Total deductions from an employee's salary, including all statutory deductions, shall not exceed 50% of the employee's monthly salary.

ARTICLE 26 - PROVISION OF TRANSPORT BY THE AUTHORITY

26.1 The Authority shall provide transport to all its employees reporting on and off duty and those who are on

official duties as provided for in their individual employment contracts and the general terms and conditions of service.

26.2 The Authority shall offer motor vehicle loans to its Employees in accordance with the Authority's loan scheme.

26.3 The Director responsible for Human Resource and Administration may approve the provision of individual official transport to any Employee. Category of employees depending on exigency of duty of such employees in doing so the Director will take into account the criticality of the appointment and the assignment the employee holds. Such provisions shall be withheld when such exigencies are withdrawn.

26.4 In the absence of provided official transport, the Authority shall reimburse transport costs at the rates approved by the Authority to affected staff.

26.5 Officials identified by the Director responsible for Human Resource and Administration, who are required to use their personal vehicles for official duty other than a trip from residence to place of work, shall be reimbursed mileage or fuel per day approved by the Authority.

26.6 The Authority shall notify the rates of transport reimbursement or mileage rates payable to the Employees for official duty other than a trip from residence to place of work as shall be approved by Authority.

26.7 The Authority shall provide transport or reimbursement for shift workers as approved by the Authority.

ARTICLE 27 - DETERMINATION OF PAY ON FIRST APPOINTMENT

The pay of an Employee on his or her first appointment shall be at the minimum of the salary scale applicable to the position being occupied. However, the Authority may offer a higher notch as circumstance may allow and depending on experience, years of service as well as the critical nature of the job.

ARTICLE 28 – ANNUAL SALARY INCREMENTS

28.1 Salary increments shall not accrue as a matter of right but as a matter of course and shall depend on the individual performance of the employee, the Authority and prevailing market conditions.

28.2 The Authority may for justifiable reasons, which shall be put in writing increase or withhold an increment **PROVIDED** that no increment shall be withheld unless the Employee is informed in writing of the grounds on which the increment has been withheld.

28.3 Annual salary increment may be withheld, deferred or stopped under the following circumstances:

a) An increment may be temporarily withheld while disciplinary investigations are in progress and shall continue until the investigations have been concluded. Once the withheld increment is restored, it shall be granted retrospectively, and the date of increment shall remain unchanged.

b) An increment may be deferred for a period up to one (1) year for reasons communicated in writing to an Employee. If and when deferred increment is subsequently restored, it shall not be granted retrospectively. However, for successive increments, the original date of increment shall remain unchanged.

c) If an increment is stopped for a specified period as a punishment, the Employee shall not be considered for grant of increment until he has served the required period at his present salary.

28.4 Annual increments shall fall due on the first day of January of a given year.

28.5 Firemen Drivers

Firemen Drivers shall be compensated for their additional duties including but not limited to firefighter's activities like operating equipment on the Fire Tenders as well as driving the trucks by paying the man allowance equal to two (2) notch size of Grade 8 as per the Authority's established salary scale.

ARTICLE 29 - MERITORIOUS SALARY INCREMENTS

Employees who have in the opinion of the Authority shown outstanding merit or have shown outstanding performance may be granted meritorious salary increment(s) equivalent to Two (2) salary notches to be awarded to the employee and a certificate of recognition.

An Employee granted a meritorious salary increment shall be informed about it in writing by the Director responsible for Human Resource and Administration.

ARTICLE 30 - REGULATION OF PAY AND SALARY INCREMENT UPON EXTENSION OF PROBATION

Where Probation is extended on account of failure to pass or meet required performance benchmarks or targets, the pay and increments will be regulated at the end of the probationary period on the basis of what the Employee would have drawn but for his or her Probation, and no arrears on this account will be paid to him or her for the period prior to the date of confirmation.

ARTICLE 31 - SALARY ADVANCES

31.1 An Employee will be entitled to apply for and receive a Salary Advance not exceeding three (3) Months wages. The application shall be addressed to the Director for Human Resource and Administration for approval.

31.2 The period within which the Salary Advance is recoverable shall be six (6) months.

PART V - TRANSFER, DEPLOYMENTS, OFFICIAL TRIPS, AND ASSOCIATED ALLOWANCES

ARTICLE 32 - TRANSFER AND OFFICIAL TRAVEL FOR EMPLOYEES

The Authority shall have the liberty to send an Employee on official travel or where possible, transfer the Employee from one position, department or station to another within the Authority as and when deemed appropriate by the Authority.

ARTICLE 33 - TRANSFERS

33. Permanent Transfers

a) Where the Authority decides to permanently transfer an employee from one duty station to another, for more than six (6) months, employee shall be advised about such a decision in writing giving particulars of the transfer. The employee being transferred shall be entitled to the following:

- **i.** One month's written notice of the transfer or one (1) months gross pay in lieu of notice.
- **ii.** Resettlement allowance equivalent to one (1) month's gross pay.
- **iii.** Physical transport for self, family and property to the new station or if preferred by the employer, money calculated at the prevailing transport market rates.

iv. Subject to operational requirements the employee will be given *at least* seven consecutive days off duty to prepare for the transfer. However the seven days will be within the stipulated one month notice.

v. Fifteen days' Daily Subsistence Allowance.

b) Temporary transfers

Any transfer to another duty station that lasts for less than six months shall be considered a transfer on temporary/ relief duties. An employee deployed on relief duties shall be entitled to the following:

i. Fifteen (15) days of physical notice or 50% of a month's pay in lieu of notice. However, the fifteen days include seven days joining time.

ii. Daily Subsistence Allowance for the temporary transfer at the rates approved for subsistence applicable for a particular employee.

iii. Physical transport to and from the station of transfer for self and baggage or money calculated at the prevailing transport market rates.

iv. An employee may not be transferred more than once a year unless he/she is the only one available and approval from DHRA will be solicited.

v. Where an employee is transferred between Kampala and Entebbe or changes residence, the employee will only be entitled to benefits specified in i &iii above

ARTICLE 34. ENTITLEMENTS DURING OFFICIAL TRAVEL

Employees travelling on official business outside Uganda shall be entitled to the following classes of air travel.

Director General	-	Club/Business Class
Deputy Director General	-	Club/Business Class
Corporation Secretary	-	Club/Business Class
Departmental Directors	-	Club/Business Class
Others	-	World/Economy Class

ARTICLE 35 - SUBSISTENCE, SAFARI DAY, PER DIEM, WARM CLOTHING, GROUND TRANSPORT ABROAD, GROUND TRANSPORT LOCAL, CONTINGENCY, MILEAGE ALLOWANCES AND FUEL FACILITATION

35.1 SUBSISTENCE ALLOWANCE AND PER DIEM

An Employee on transfer or official duty within or outside Uganda, as the case maybe, shall be entitled to such allowances and per diem as the Authority may determine from time to time.

35.2 SAFARI DAY ALLOWANCE

An Employee shall be deemed to have left his or her duty station where the Employee travels for official reasons to a distance of more than thirty (30) Kilometers for 6 or more hours. In such an event, the Employee shall be entitled to Safari Day Allowance as stipulated in schedule two (2) or may be determined by the Authority from time to time.

35.3 WARM CLOTHING, GROUND TRANSPORT TO AND FROM AIRPORT

a) Warm clothing

When exigency of service requires an employee to travel to a place in the temperate and cold climatic regions, he /she shall be paid warm clothing allowance provided that the allowance shall be paid when travel is made during autumn and winter. Such allowance shall be paid only once in two consecutive years at a rate to be determined by the authority from time to time.

b) Ground transport in and out of Uganda

When travelling out of the country, staff of all grades shall receive an allowance to cover the cost of ground transport abroad. Staff that are not provided with mileage or fuel facilitation shall also receive transport facilitation to and from the airport within Uganda. The rates shall be determined by the Authority from time to time.

35.4 MILEAGE ALLOWANCE OR FUEL FACILITATION

a) An Employee who uses his or her own motor vehicle for official trips outside the municipal limits of his or her duty station-other than a trip between his or her residence and place of work, shall be entitled to Mileage Allowance or fuel in accordance with rates or quantities notified by the Authority from time to time.

b) An Employee intending to use his or her own motor vehicle for official duty shall be required to obtain prior permission from the Director responsible for Human Resource and Administration in order to qualify for a Mileage Allowance or fuel. The applicable fuel and mileage are indicated in schedule 4,

PART VI - LEAVE

ARTICLE 36 - DEFINITION OF LEAVE

36.1 Leave is authorized absence from duty for a specified reason and shall be calculated based on working days.

36.2 Except where otherwise stated, an Employee will be entitled to the following types of leave, subject to the conditions hereinafter laid down:

a) Annual Leave

b) Sick Leave

c) Maternity Leave

d) Paternity Leave

e) Compassionate Leave;

f) Study Leave

ARTICLE 37 - ANNUAL LEAVE

37.1 Every Employee of the Authority shall once every calendar year, be entitled to a holiday with full pay and the following number of days:

Level		Number of Days
Level 10 and above	-	36 (thirty six) working days
Others	-	30 (thirty) working days

37.2 An Employee shall be entitled to take the Leave, as shall be agreed and approved by the Authority.

37.3 A newly appointed Employee shall be eligible for Annual Leave upon successful completion of Probation, where Probation is applicable.

37.4 It is the responsibility of the employee to apply for Annual Leave before its commencement, an Employee shall submit a written application form to the Authority for approval.

37.5 Where an Employee proceeds on Annual Leave in the same year when such Employee is due for retirement, resignation or termination of service, the actual leave days due to the Employee will be calculated in proportion to the number of actual days worked by the Employee during that year prior to his departure.

37.6 Leave allowance shall be earned even if the leave period is postponed.

37.7 The Authority will ensure that all Employees proceed on Annual Leave in order for the Authority and all Employees to reap the benefits associated and accruing from rest. Accordingly all employees shall be required to take their annual leave during the year when it is due and if for compelling reasons it is rescheduled, it shall be taken on the agreed rescheduled date without fail or else it shall be forfeited. Leave shall not be accumulated for more than two years.

37.8 Where an Employee contracts any illness requiring bed rest or admission to a hospital or equivalent medical institution during annual leave, the Employee will be entitled to apply for compensation of the days in question, with an equivalent number of days under Sick Leave, PROVIDED that the sickness is certified by the Designated Medical Practitioner and can be supported with evidence where such leave is granted, it shall not exceed the number of days permissible for sick leave.

37.9 It is the responsibility of the employee to prove the sickness to the satisfaction of the DHRA prior to compensation of the days in question with Sick Leave.

37.10 An employee proceeding on leave shall be paid a leave allowance of an equivalent of one month's

gross pay.

ARTICLE 38 - ANNUAL LEAVE PROCEDURE

a) Leave application by an employee shall be made on approved leave application forms. The forms shall be handed to the immediate supervisor for recommendation and then to the Head of the Directorate for approval. After approval the form shall be sent to the Directorate of Human Resource and Administration for recording and processing of any benefits, allowances and salary in advance. It is the responsibility of an employee to apply for leave one month prior; to the date of commencement of leave. Leave shall become effective after final approval by the Director Human Resource and Administration.

b) Where an employee cannot proceed on leave due to exigencies of duty, he or she may postpone his or her leave for a period not exceeding twenty-four months from the time when the leave was due.

ARTICLE 39 - RESCHEDULING LEAVE OR RECALL OF AN EMPLOYEE ON ANNUAL LEAVE

The Authority shall have the discretion to reschedule or recall an Employee from Annual Leave, where due to the exigencies of duty, it is justifiable to reschedule Annual Leave or recall the Employee. Where an Employee is recalled, the Authority shall pay for his or her return journey at the prevailing public road transport rate. Leave rescheduling or recall, shall be highly discouraged as much as possible however where circumstances are such that leave rescheduling or recall is the only option, the supervisor shall justify this and once approved the leave shall be rescheduled to a specific date and shall thereafter be taken without any further rescheduling, however, such rescheduling and recalling shall only be done on compelling conditions.

ARTICLE 40 - SICK LEAVE

An employee who has completed not less than one month continuous service with the authority, and who is incapable of work due to sickness or injury shall be entitled to sick leave with pay as follows:

a) An employee who is absent from duty owing to illness shall be entitled to 30 days of ad hoc sick leave with full pay provided that an approved medical practitioner certifies the absence.

b) An employee who stays on a lengthy and prolonged absence from work arising out of medically certified sickness shall be handled as follows:

- **I.** For the 1st Six (6) months, the employee shall receive full pay (100%)
- **II.** For the next three (3) months shall receive 75% of one (1) month's pay
- **III.** After nine months (9) shall receive 50% of one (1) month's gross pay
- **IV.** Following b (**iii**) above the employee's employment with the Authority may be terminated on medical grounds after discussions with the Union.

Employees with HIV/AIDS shall be given longer periods of absence as long as they have declared to the DHRA about their health status, and as per the Authority's HIV/AIDs policy. All information declared to the DHRA shall be kept confidential

ARTICLE 41 - MATERNITY LEAVE

41.1 A female Employee shall as a consequence of pregnancy, have the right to a period of sixty (60) working days' leave from work on full wages hereinafter referred to as "Maternity Leave", of which at least four (4) weeks shall follow the childbirth or miscarriage.

41.2 A female Employee who becomes pregnant shall have the right to return to the position she held immediately before Maternity Leave or where practicable, to a reasonably suitable alternative position on terms and conditions not less favorable than those which would have applied had she not been absent on Maternity Leave.

41.3 In the event of sickness arising out of pregnancy or confinement, affecting either the mother or the baby, and making the mother's return to work medically inadvisable, the Employee shall qualify to be granted extra leave days which shall be treated as Sick Leave as provided for under Article 40.

41.4 A female Employee who seeks to exercise any of the rights mentioned here in above shall produce a certificate as to her medical condition from the Designated Medical Examiner or where inapplicable, the medical practitioner responsible for her treatment, to the satisfaction of the DHRA.

41.5 Maternity Leave may be taken at the same time with Annual Leave, where practicable and convenient for the operations of the Authority, PROVIDED that the Employee applies for Annual and Maternity Leave at least two (2) months before the due date.

ARTICLE 42 - PATERNITY LEAVE

42.1 A male Employee shall, immediately after the delivery or miscarriage of a wife, have the right to four (4) working days' leave from work yearly on full pay, hereinafter referred to as "Paternity Leave".

42.2 A male Employee shall as soon as reasonably practicable, produce proof of birth or miscarriage from the Designated Medical Examiner or where inapplicable, the medical practitioner responsible for his wife's delivery or treatment.

ARTICLE 43 - COMPASSIONATE LEAVE

Leave on compassionate grounds may be granted by the Authority where an Employee is bereaved or for any other justifiable reason ("Compassionate Leave"), and such Leave shall be granted at the Authority's discretion and conditions. Staff shall be permitted five (5) days as compassionate leave at any one time and no employee shall be permitted more than 14 calendar days within a period of 12 consecutive months.

ARTICLE 44 - STUDY LEAVE

The Authority aims to encourage staff to pursue relevant training and education to gain extra skills, knowledge and aptitude and improve their job performance and satisfaction. Study leave maybe on paid or unpaid arrangement. Whilst the Authority is keen to develop staff, a balance needs to be maintained between the development of staff and the efficient running of the Authority.

44.1 Study leave for a course or training in excess of six (6) Months sponsored by anybody other than the Authority may be granted to an employee by the Human Resource and Administration Committee of the Board subject to the following conditions:

a) That the committee is satisfied that undue hardship will not be caused to the Authority by any grant thereof;

b) That during the period the employee undertakes to return to work for the Authority for such period as the board may determine.

c) That the course of study is relevant to the duties likely to be performed by the employee for the Authority now and in future in accordance with the Authority's succession plan.

d) The committee may vary or modify the above conditions and may impose any other conditions it may deem fit.

e) The above conditions shall also apply to courses below six (6) months that are approved by management.

44.2 Employees attending courses sponsored by the Authority shall be bonded and the procedure of bonding shall be prescribed in the training regulations.

44.3 Study leave for a course or training sponsored by the Authority shall be regulated under the Authority's Training Regulations.

ARTICLE 45 - TREATMENT OF UNAUTHORIZED ABSENCE

45.1 An Employee who is absent from duty without authorization, shall not be entitled to the salary and allowances during the period of such absence.

45.2 Where an Employee remains absent for a period of 14 consecutive days or more, without prior permission, the Employee shall be deemed to have absconded, and his or her services may be terminated without notice PROVIDED that if satisfactory reasons are given for the absence, and for failure to inform the Authority of the absence, the Employee may be reinstated.

PART VII - WORKING HOURS, REST INTERVALS, HOLIDAYS AND OVERTIME & EXTRA HOURS

ARTICLE 46 - LENGTH OF WORKING HOURS AND REST INTERVALS

46.1 The Authority and the Union recognise that the Air transport industry operates twenty-four (24) hours a day. The standard working hours shall not be more than forty Eight (48) hours per week for office workers (Monday to Friday) and forty eight (48) hours per week for shift workers, spread over five days within any seven days, so as to give each employee at least two days of rest over the period.

46.2 Rest/meal intervals shall be the subject of local arrangements to suit operating conditions at a particular duty point, it being understood that during periods of abnormal pressure, staff may be required to work through normal rest, meal intervals. In such circumstances, an alternative rests/meal interval will be allowed, if practicable, immediately before or after the time of the normal rest interval.

46.3 All Employees shall work at the time and station notified to them.

46.4 All shift workers shall be rostered in at least three (3) way running shift except stations that do not operate twenty-four (24) hours.

ARTICLE 47 - PUBLIC HOLIDAYS

47.1 Public holidays shall be those gazetted from time to time by the Government of Uganda.

47.2 Such holidays shall be observed by all Employees other than those whose retention on duty is required by the Authority for operational reasons.

47.3 The Employees shall be entitled to meals.

In addition to meals, when an employee works during a public holiday, the Authority shall pay the employee an equivalent of Safari Day Allowance as per Authority determined rates.

ARTICLE 48 - OVERTIME

48.1 Employees in the Levels 1-8 shall be paid overtime, while those from Level 9 and above who are nonexempt shall qualify for extra hours' allowance. In order to qualify for overtime/extra hour's payment, it shall be authorized by the Authority who shall ensure that adequate supervision was provided and that over time essential to the best interests of the Authority shall be worked.

48.2 Overtime hours shall be determined by Management in accordance with the law.

48.3 Payment rates of overtime worked shall be determined by the union and Management from time to time.

PART VIII - CONTINUOUS SERVICE

ARTICLE 49 - CONTINUITY OF SERVICE

49.1 An Employee's Continuous Service shall not be regarded as broken where an Employee is absent from work -

- **a)** Due to his or her taking Leave.
- **b)** Due to his or her suspension with or without pay;
- **c)** Due to having been temporarily laid off by the Authority
- **d)** During the time of court proceedings up to the time of conviction. However, this does not apply to traffic offences.
- **e)** In accordance with the Agreement or Contract of Service between the Employer and Employee.
- **g)** A series of cumulative consecutive contracts shall be regarded as continuous service.

49.2 Any period of time lapsing in a situation referred to in *49.1* above shall count for purposes of calculating length of continuous service.

PART IX - CESSATION OF SERVICE

ARTICLE 50 - RETIREMENT

50.1 "Retirement" shall be understood to apply to an Employee who ceases to offer his or her service to the Authority upon attaining the age of sixty (60) years or such other age as may be determined from time to time by the National laws.

50.2 Upon attainment of the age of sixty (60) years, an Employee shall automatically retire.

ARTICLE 51 - VOLUNTARY RETIREMENT

An Employee who completes fifteen (15) or more years of continuous service for the Authority may voluntarily retire upon attaining the age of fifty-five (55) years and after giving the Authority not less than three (3) months written notice of voluntary retirement.

ARTICLE 52 - RETIREMENT ON MEDICAL GROUNDS

The Authority may require an Employee to compulsorily retire due to medical unfitness or other incapacity resulting in failure by the Employee to carry out his or her duties. To determine medical fitness, the Authority may refer the employee to a designated medical examiner to examine the Employee and give its recommendations. However, the employee may opt to have a medical examiner of his/her choice present at this examination.

ARTICLE 53 – DEATH

Upon the death of an employee, the date of death shall be deemed the effective date of termination.

ARTICLE 54 - RESIGNATION BY AN EMPLOYEE

54.1 For avoidance of doubt, an Employee who intends to resign from the service of the Authority, which in all intents and purpose amounts to termination by the Employee of his or her Contract of Service, will be required to comply with the notice requirement stipulated under *Article 51.* PROVIDED that prior to the resignation, the Employee requests and obtains the Authority's waiver in writing, of part or the entire notice required.

54.2 The Authority and the Employee may also agree to adjust the balance on Annual Leave at the credit of the Employee towards the notice period, if circumstances of the case so demand.

ARTICLE 55 - ABSCONDMENT

a) An employee who absents himself/herself from duty for fourteen (14) consecutive working days without permission or communicating to the supervisor with justifiable reasons, shall be assumed to have absconded from work and shall have automatically terminated his/her services with the Authority unless with justifiable reason and in such circumstances it is the duty of the supervisor to bring the matter to the responsible director who will in turn notify the Director Human Resource and Administration who must bring the Matter to Management at the next Management sitting.

b) A supervisor who fails to notify the relevant authority about an employee's abscondment will be subject to disciplinary action as per Article 80.2.

ARTICLE 56 - TERMINATION OF CONTRACT OF SERVICE

Termination shall be deemed to take place in the following instances:

a) Where the Contract of Service is voluntarily ended by the Authority or the Employee, with notice as provided for under this Agreement;

b) Where the Contract of Service, being for a fixed term or task, ends with the expiry of the specified term or task and is not renewed within a period of one (1) Month from the date of expiry, the incumbent he/she shall be informed in writing; or

c) Where the Contract of Service is ended by the Authority for disciplinary reasons, stipulated in *Article 80.*

ARTICLE 57 - DIVESTITURE, PRIVATISATION, TAKE OVER

57.1 Where the Authority divests or privatizes or hands over part or the whole Section or Department to another employer, the Authority shall treat the affected employees as under Redundancy under *Article.61.*

57.2 An employee's contract of service shall not be transferred to the new employer without his/her consent.

57.3 All affected employees by the above *Article 57* shall be paid all their due benefits prior to their exit.

ARTICLE 58 CHANGE/TRANSFER OF AUTHORITY/UNION DESIGNATION

a) In the event of the Union re-registering with the Registrar of Trade Unions under another name or transfers its members to another trade union during the term of this agreement, the agreement shall continue to apply and remain binding on the successor workers organisation.

b) In the event of the Authority re-registering under another name or transferring its business or part of it to another employer during the term of the Agreement, the agreement shall continue to apply and remain binding on the successor employer. The existing employee shall however retain the option to continue with a new employer or to be retired on the existing terms. Thereafter, the employee shall be free to enter a new contract of employment with the incoming employer.

ARTICLE 59 - NOTICE OF TERMINATION

59.1 The notice referred to in this Agreement shall be written in English, and shall be:

a) Not less than two weeks, where the Employee has been employed for a period of more than six (6) months but less than one (1) year;

b) Not less than one (1) month, where the Employee has been employed for a period of more than twelve months, but less than five (5) years;

c) Not less than two (2) months, where the Employee has been employed for a period of more than five (5) years but less than ten (10) years; and

d) Not less than three (3) months where the employee has been employed for ten (10) years or more.

e) The above notice periods can be waived by either party by paying the equivalent in lieu.

59. 2 The Employee or the Authority shall not terminate a Contract of Service without giving notice, except:

a) Where the Contract is terminated summarily for violation of this Agreement and Authority's Code of Discipline in accordance with *PART XI* of this Agreement.

b) Where the reason for termination is attainment of retirement age;.

ARTICLE 60 - EFFECTIVE DATE OF TERMINATION

The date of termination shall be deemed to be:

a) In the circumstances governed by the date of the expiry of the notice given and

b) In the circumstances governed by the date of the expiry of the fixed term or completion of the task.

c) The date of retirement.

d) The date of death.

ARTICLE 61 - REDUNDANCY AS A GROUND FOR TERMINATION BY THE AUTHORITY

Redundancy shall be a ground for termination of a Contract of Service, with notice and other conditions stipulated hereunder, being:

a) Three months' written notice or three (3) months' pay in lieu of notice;

b) All allowable allowances up to the date of redundancy.

c) Where applicable, any Long Service Awards which may have accrued at the time of the Redundancy.

d) Severance pay at the rate of one (1) month's pay per completed Year of service;

e) Service Gratuity as provided for under Article 73 and

f) Transport Facilitation at the rate of one (1) month's pay.

g) Accumulated leave.

ARTICLE 62 - TERMINAL BENEFITS

Upon termination of a Contract of Service, other than for Summary Dismissal the Employee will be entitled to the following benefits;

a) Where applicable, payment in lieu of notice;

b) Where applicable, any Long Service Awards which may have accrued at the time of the termination.

c) Where applicable, Service Gratuity as provided for under *Article 73.*

d) Where applicable, Transport Facilitation at the rate of one (1) months' Gross pay or repatriation with a maximum lorry of ten tons; and

e) Any other allowable allowances.

PART X - WELFARE AND OTHER BENEFITS

ARTICLE 63.1 BENEFITS UPON CONTRACTING LEGAL MARRIAGE

In the event an employee contracts a legal marriage, such staff shall be entitled to;

a) A gift equivalent to Uganda Shillings Three Hundred Thousand (Ugx300,000/=) only for L1-12 and,

b) Transport at a rate of Uganda Shillings Two Hundred Thousand (UGX 200,000/=) only.

c) A gift equivalent to UGX 500,000 only for L13 and above.

For avoidance of doubt, this Article shall apply to one marriage except where the employee has lost his/her spouse.

ARTICLE 63.2 - BENEFITS UPON DEATH OF AN EMPLOYEE

In the case of an Employee dying during the term of a Contract of Service, his or her benefactors or legal representatives shall be entitled to all Wages and any other benefits due to the Employee at the date of death. The authority shall pass a death announcement in the press for the deceased staff.

ARTICLE 64 - FUNERAL/BEREAVEMENT BENEFITS

64.1 The Authority shall in addition provide the following Funeral Bereavement Benefits:

a) Cash contribution equivalent to one (1) month's gross Pay;

b) A standard coffin; wreath, and wrapping material

c) Transport for the body to the place of burial; and

d) Cash for embalmment and construction of the grave at the rate of 75% of his/her gross salary;

64.2 In case of the death of an employee's spouse, registered child or unregistered infant not exceeding sixty (60) working days from the date of birth, the Authority shall provide:

a) Cash contribution equivalent to 75% of one (1) month's Gross Pay.

b) A standard coffin; wreath and wrapping material

c) Transport for the body to the place of burial; and

d) Cash for embalmment and preparation of the grave at the rate of 50% of employee's Gross Salary.

64.3 If an employee loses a biological parent, the Authority may provide assistance where possible and affordable. However this is at management's discretion and shall not be claimed as a right.

64.4 The Authority shall make the following payments and provisions to the estate of an employee who dies while in the service of the Authority:

- **i.** Salary and due allowances up to the date of death,
- **ii.** Money in lieu of accumulated leave.
- **iii.** Any outstanding allowances and benefits
- **iv.** Service Gratuity in accordance with Article 73
- **v.** Long Service Awards (in accordance with Article 73), which would have been earned but not yet given to the employee by the time of death.
- **vi.** One month's Gross pay to cater for the transportation of the property of the deceased employee or a ten ton truck for repatriation.

ARTICLE 65 - MEDICAL POLICY

65.1 The Authority shall provide free medical treatment to all its employees and their immediate families. The medical treatment shall be provided as follows;

Out-patient (Treatment and Medical Care)

Category of employee	Amount
Exec 1	Free for self and registered family
Exec 2	Free for self and registered family
Exec 3	Free for self and registered family
L 14	Free for self and registered family

L 13 - 1	1,000,000/= p.a - or As agreed upon from time to Time between Management And Union

65.2 Entitlements to free medical treatment shall extend to the Employee, his or her spouse and six (6) registered children of not more than twenty Four years of age.

65.3 Medical treatment shall include:

a) Outpatient and general medical attention; and

b) Dental services and eye care or treatment shall be provided as determined by the Authority from time to time; however, where the employee is required to buy a pair of spectacles, the Authority shall meet the cost separately outside the outpatient medical care.

For purposes of clarity, the Authority shall meet the costs separately outside the outpatient medical care provided always that:

i. The employee shall prove that the cost of frames, are as diagnosed by a doctor. The bills of frames to be settled for staff only, excluding their spouses and dependents, shall be at a maximum cost of Ugx 500,000/- per annum and,

ii. The bills of lenses to be settled are for staff only, excluding their spouses and dependants, at a maximum cost of Ugx 500,000/- per annum.

iii. The above figures apply for Dental services.

ARTICLE 66 - HOSPITALIZATION IN UGANDA

The Authority shall pay for medical treatment bills for hospitalization of an employee, his/her spouse and registered children at any approved hospital in Uganda. Individual cases to be treated at particular medical facilities shall be guided by the medical policy of the Authority.

Where an employee is hospitalized or bed ridden, an official from the office of the Director responsible for Human Resource and Administration office shall check on him/her. The said official shall be facilitated in accordance with the medical policy.

ARTICLE 67 - MEDICAL TREATMENT OUTSIDE UGANDA

The Authority may pay for medical treatment bills of an employee who is treated or hospitalized at a facility outside Uganda PROVIDED that prior approval by the Board for the treatment is sought and obtained, and after getting a proof that such medical service is not available in Uganda.

ARTICLE 68 - MEDICAL INSURANCE FOR EMPLOYEES ON OFFICIAL TRAVEL OUTSIDE UGANDA

The Authority shall execute a medical insurance policy to cover its employees on official duty outside Uganda.

ARTICLE 69 - HIV/AIDS POLICY

69.1 The Authority and the Union recognize that HIV/AIDS disrupts provision of its services by affecting the work place both directly and indirectly. It is therefore imperative that the issues pertaining to HIV/AIDS are handled in the most effective manner possible.

69.2 The Authority shall be guided by the HIV/AIDS policy in **schedule 7**

ARTICLE 70 - HEALTH AND SAFETY POLICY

70.1 The Authority and the Union recognize the importance of developing and maintaining healthy and safe working conditions in all work places, and the importance of keeping the health and safety standards in these workplaces under constant review. It shall be the duty of the Authority:

a) To promote the safety and well-being of its Employees;

b) To build a positive and healthy work environment;

c) To ensure that the working environment is free from any hazards;

d) To provide appropriate information, training and supervision necessary for the safety and health of employees;

e) To provide adequate protective wear and to prevent risk of accidents; And;

f) To do any other action that enhances the safety, health and wellbeing of Employees at their workplaces.

g) There shall be a Health and safety committee comprised of Union and Management chaired by

Director Human Resource and Administration

70.2 The Authority shall be guided by the Health and Safety Policy in **schedule 8**.

ARTICLE 71 - ENVIRONMENTAL MANAGEMENT

Management and Union shall develop a comprehensive environmental management policy that will guide all aspects of environment management at the Authority

ARTICLE 72 - INSURANCE POLICY COVERS

72.1 The Authority shall provide a twenty four (24) hour cover against any injury to any of its Employee while in service.

72.2 The benefits of this scheme shall be in line with the provisions of the Workers Compensation Act., CAP 225.and as maybe amended from time to time.

ARTICLE 73 - SERVICE AWARD SCHEMES

73.1 Service Gratuity

The Authority shall pay the following service gratuity to qualifying Employees using the last earned gross Pay

Period of Service	Benefit
Less than **4** years	Nil
Over **4** years but less than **10** years	One and a half month's Gross Pay for each year of completed service and any part thereof.
Over **10** years but less than **15** years	Two month's Gross Pay for each year of completed service and any part thereof.
Over **15** years but less than 20 years	Two and a half months' Gross pay for each completed service and any part thereof.
Above **20** years	Three months Gross pay for each year completed service and any part thereof.

However, for every ten (10) years completed in service, upon calculation of service gratuity there shall be two (2) extra months gross pay to the beneficiary.

73.2 Long Service Award

a) Upon attainment of ten (10) continuous years of service with the Authority, an Employee will be entitled to a benefit herein after described as "*Long Service Award*", which shall be paid as follows -

Staff Category	Benefit
Exec 1 - L14	Two return club air tickets to the United States of America or monetary equivalent in Uganda shillings
L 13-10	Two return economy class air ticket to Europe or monetary equivalent in Uganda shillings
L 9 - 3	60 pieces of iron sheets (24 gauge) and 4 tons of cement or monetary equivalent in Uganda shillings
L 2-1	40 pieces of iron sheets (24 gauge) and 3 tons of cement or monetary equivalent in Uganda shillings

b) As much as possible, physical materials shall be given unless otherwise the beneficiary prefers his /her award in monetary terms. For this matter prior consent from the beneficiary may be sought. The costs of delivery of the items from the supplier's premises shall be borne by the employee.

c) Thereafter, the employee shall be entitled to the award after every additional ten years of service.

d) In addition to the monetary award the Authority shall, at each stage issue to the employee a certificate of appreciation mentioning the period of service attained by the employee.

e) The foregoing awards shall be given to the employee at the time when they become due. However, if they are not yet given to the employee by the time his/her services with the Authority are being terminated, the awards will form part of the employee's terminal package.

73.3 Golden handshake

Employees of all categories upon attainment of the retirement age of 60 years shall be given a golden handshake of a voucher equivalent to UGX 1,500,000/= (Uganda Shillings One Million and Five Hundred only).

ARTICLE 74 - NATIONAL SOCIAL SECURITY FUND CONTRIBUTION

The Authority and its eligible Employees shall contribute to the National Social Security Fund by remitting the appropriate sums of money prescribed under the National Social Security Fund *Act Cap. 222* or its successor in law.

PART XI - DISCIPLINARY CODE, RULES AND PENALTIES

ARTICLE 75 - DISCIPLINARY COMMITTEE

75.1 The Authority shall constitute a Disciplinary Committee to hear allegations of indiscipline and violations of this Agreement and to make appropriate recommendations to the Authority.

75.2 The Disciplinary Committee's composition and chairperson will be determined by the Authority, bearing in mind the rules of fairness, natural justice and appropriate seniority of the members, PROVIDED that the Directorate responsible for Human Resource and Administration, the Directorate of the Employee against whom charges are brought and the Union, are represented. As much as possible, every Disciplinary Committee should have a representative from the legal department.

75.3 The Director Human resource shall ensure that the Employee appears before the disciplinary hearing, as soon as it is availed with the relevant details and information; such summon shall be in writing.

ARTICLE 76 - DISCIPLINARY PROCEEDINGS

76.1 Where an Employee is suspected of having violated this Agreement, the General terms and conditions of service or any other Regulations of the Authority, disciplinary procedures will be implemented without unnecessary delay, after proper investigations are completed, where necessary.

76.2 Where a decision to implement a disciplinary procedure is taken, the Authority shall at the first opportunity -

a) Inform the Employee, in writing, of the violation(s);

b) Remind the Employee of his or her right to prepare and submit a written explanation, and to appeal any decision;

c) Give the Employee reasonable time to prepare a response or defense to the allegations against him

or her;

d) Inform the Employee of the form the disciplinary proceedings will take;

ARTICLE 77 - RULES OF DISCIPLINARY HEARINGS

The following will be the Rules of Procedure for Disciplinary Hearings -

a) The Chairperson will chair the hearing and direct the proceedings assisted by other members;

b) The Committee will appoint a Secretary, who will be a representative from the Directorate responsible for Human Resources and Administration;

c) Members of the Disciplinary Committee and the employee shall be given an opportunity to raise any concern over conflict of interest at the earliest opportunity, which will be considered and ruled upon by the chairperson;

d) Statement of facts: The Chairperson will deliver or direct a member of the Committee to read the facts constituting the alleged violation(s) to the Employee;

e) Taking of Plea: After reading the facts, the Chairperson will invite the Employee to plead or raise preliminary points/questions to the facts;

f) Burden of Proof: The burden of proving the violations will rest on the Authority;

g) Standard of Proof: Disciplinary proceedings are civil in nature. Accordingly, the standard of proof is on a balance of probabilities;

h) Failure to Attend hearing by an Employee: Where an Employee fails, refuses or neglects to turn up for a hearing, having received adequate notice of the hearing and without any justifiable reason, the Disciplinary Committee will decide whether to proceed with the hearing and consider only the written defense submitted by the Employee;

i) The Hearing: The proceedings of the Committee are formal, and will be conducted in a the most convenient manner that ensures clarity of issues;

j) The Decision: The Committee will deliberate on the issues in absence of the Employee, and will report its recommendations to the Competent Authority;

k) The Disciplinary Committee will conduct its hearings in English, keep a record of its proceedings and ensure fairness and natural justice during the hearing.

l) The Director Human Resource and Administration shall communicate to the members of the disciplinary committee the decision taken by management and reasons for taking such decision in regard to the violation.

m) The chairperson of a disciplinary committee shall notify any employee appearing for a disciplinary hearing of the right to appeal against any disciplinary action / penalty imposed on him/her.

ARTICLE 78 - SUSPENSION OF EMPLOYEE PENDING INQUIRY AND DISCIPLINARY HEARING

78.1 Whenever the Authority is conducting an inquiry, where it is reasonably believed that the employee may interfere with the investigation or evidence, the Authority shall suspend that Employee with half pay in any case for a period not exceeding four (4) weeks or the duration of the inquiry, whichever is shorter.

78.2 After completion of the investigation the Director Human Resource and Administration will instruct the Employee to appear for a disciplinary hearing before a duly Constituted Disciplinary Committee, where the Employee will be given an opportunity to defend him/herself against the allegations, and for the Disciplinary Committee to seek clarification on the facts surrounding the allegations against the Employee.

78.3 Whenever an Employee on suspension is reinstated after a finding that the Employee was not culpable, his or her dues or other benefits withheld to the Employee shall be paid to him or her PROVIDED that where the Employee was found culpable the withheld dues or benefits were not part of the punishment.

78.4 The disciplinary committee will advise the authority giving the recommendations upon assessing the evidence.

78.5 Whenever management disagrees with the disciplinary committees' recommendations, written reasons shall be provided to the committee explaining the differences.

78.6 Where the Authority exceeds the statutory mandatory period provided for in Article 78 (1) above, the employee may petition the Director General for redress.

ARTICLE 79 - RECORDS OF VIOLATIONS AND ACTIONS

79.1 The Authority shall keep a record of the nature of any violations and consequential actions taken, the reasons for the action, the lodging of an appeal and outcome of such appeal, and any other

developments.

79.2 A disciplinary penalty shall not be imposed on account of an Employee's participation or proposed participation in the activities of a union outside working hours or, with the consent of the Authority, within working hours, or in the organization or proposed organization of lawful industrial action.

ARTICLE 80 - MISCONDUCT AND PUNISHMENTS

80.1 Every employee shall at all times maintain absolute integrity and devotion to duty and conduct himself or herself in a manner conducive to the best interest, credit and prestige of the Authority.

80.2 Any breach of this Agreement by an Employee shall be deemed to constitute misconduct punishable as provided hereinafter.

S/No	VIOLATION	PUNISHMENT
1.	Conviction in a Court of Law of any criminal offence involving moral turpitude	Summary Dismissal
2.	Gross misconduct or negligence calculated to injure the Authority or its business	Summary Dismissal/Termination
3.	Soliciting and or receiving for services in an official capacity, commissions, consideration whatsoever from any person (i.e. Corruption in all known forms)	Termination
4.	Failure to promptly account for money or other property collected on behalf of the Authority or Advanced by the Authority.	Warning and deduction of the outstanding accountable amount from salary
5.	Fraud, forgery, grave misappropriation of the Authority's funds	Summary Dismissal
6.	Insolvency or being declared bankrupt	Termination

S/No	VIOLATION	PUNISHMENT
7.	Disclosure of the Authority secrets obtained in the Course of duty without proper authority e.g. a) confidential matters discussed in official capacity. b) matters on Personal Confidential files	Suspension or depending on the sensitivity of the information, Termination
8.	Incompetence or inefficiency in performance of duties.	1st written warning by immediate supervisor copy to HR and union; 2nd written warning by head of department copy to Union. 3rd and last written warning by HR /competent authority by advice of the supervisor; 4th warning termination Termination
9.	Causing damage, loss or breakage to the Authority's property or money by default, commission, omission or negligence	Surcharge to make good the damage or recover the loss/property thereof as Management may deem fit with regard to the circumstances, failure of which leads to termination
10.	Removal, alteration or mutilation of the Authority property without proper authorization	Dismissal
11.	Absenteeism without permission or reasonable cause, persistent late coming, early departure from work and taking extended breaks a) Missing one (1) day b) Missing two days (2)	 a) Verbal warning from Head of Department b) Written warning from Head of

S/No	VIOLATION	PUNISHMENT
	c) 3 written warnings in one year d) 2 suspensions in one year	Department, copy to personal file; c) Suspension without pay for fifteen (15) days d) Termination of service
12.	Absenteeism without permission but with reasonable cause	Deduction of days of absence from Annual Leave
13.	Abscondment - absenteeism for more than fourteen (14) consecutive working days	Suspension for fifteen (15) days without pay until receipt of acceptable explanation Termination of service if no satisfactory explanation, or if no response after thirty (30) days or other reasonable period
14.	Perpetual intoxication rendering a contracted staff unfit for proper performance of duty	Suspension for fifteen (15) days without pay and then dismissal if no improvement by warned staff member
15.	Refusing or neglecting to carry out legitimate instructions from a supervisor	Three (3) written warnings in the course of services. Termination on fourth warning.
16.	Action or omission that is prejudicial to the proper performance of the Authority duties within Or outside the Authority's premises.	1st instance, written warning, 2nd instance. Suspension for fifteen (15) days on half pay. 3rd instance service termination

S/No	VIOLATION	PUNISHMENT
17.	Using one's position in the Authority for personal gain or advancement of own interest to the detriment of the Authority or its business or Using ones official position for sexual favors /advances and benefit.	One written warning in the course of service Termination of service in the 2nd instance
18.	Using objectionable, abusive, insulting language or insulting behavior to any person in the course of discharging duties	1st instance, written warning. 2nd instance suspension on half pay, 3rd instance, service termination
19.	Assaulting a member of staff or public either in or outside the Authority while on duty	Termination
20.	Holding another full time engagement without written permission from the Authority	1st instance, written warning, 2nd instance Suspension for fifteen (15) days at half pay. 3rd instance termination
21.	Improper, unprofessional and or indecent attire	1st instance, send home, 2nd instance written warning, 3rd instance written warning. 4th instance suspension for 15 days on half pay
22.	a) Gossiping, idleness, disrupting other employees during work, spreading rumors or unfounded information aimed at causing hatred, demeaning or causing disaffection to other employees or supervisors.	1st instance Written warning from the Head of Department 2nd instance warning with suspension for 15 days. 3rd instance termination

S/No	VIOLATION	PUNISHMENT
	b) Defamation – Communication be it verbal (slander) or in written (libel) aimed at tarnishing the image of the authority of individuals in the authority.	Dismissal
23.	Violation of the Authority's Policies on Sexual Harassment, Health and Safety, Medical and HIV/AIDS etc	As prescribed under the Policies
24.	Aiding and Abetment of or attempt to commit any of the above offences	Suspension fifteen (15) days without pay coupled with any other punishment depending on the circumstances or Termination
25.	Failure to clock in system/ sign the attendance register without a reasonable cause for five (5) consecutive days	1st instance warning from HR 2nd instance warning from the Head of directorate 3rd instance suspension 4th instance termination
26.	Smuggling, aiding or being involved in any form of smuggling	Dismissal

NB:

i) The instances of misconduct mentioned above, are merely illustrative in nature and therefore not exhaustive. Accordingly, the Authority shall handle other offences not mentioned above following natural justice.

ii) Suspensions shall be on half pay with medical facilities in full and housing where applicable.

ARTICLE 81 - SUMMARY DISMISSAL

Where a punishment of Summary Dismissal is imposed, the Employee shall lose all terminal benefits payable by the Authority except the following -

a) Salary and allowance due up to the date of dismissal;

b) Annual leave prorated up to the date of dismissal; and

c) Any long service award accrued.

d) One month's gross pay as transport facilitation

ARTICLE 82 - APPEALS

82.1 Any employee aggrieved by the outcome of the disciplinary hearing may have a right to appeal to the competent authority for redress as indicated in **Schedule 6**.

82.2 An appeal shall be preferred within fifteen (15) days from the date of receipt of the order applied against and shall be decided by the Appellate Authority within 15 days of receipt.

82.3 Implementation of a punishment imposed on the Employee will be stayed pending conclusion of the Appeal.

82.4 Appeals shall be in writing stating the grounds of objection.

PART XII - MISCELLANEOUS

ARTICLE 83 - EFFECTIVE IMPLEMENTATION

If any difficulty arises in giving effect to the provisions of this Agreement, the Authority after consulting with the Union, may by general or special order make such provisions as appear to it to be necessary or expedient for the better implementation of this Agreement.

ARTICLE 84 - INTERPRETATION

If any question arises relating to the interpretation of this Agreement, it shall be referred to the Central Negotiating Council.

Interpretation by the CNC shall be final.

ARTICLE 85 - DISCRIMINATION

85.1 There shall not be any kind of discrimination in employment by the Authority. Discrimination includes any distinction, exclusion or preference made on the basis of, race, tribe, color, creed, sex, age, religion, political opinion, nationality, social origin, HIV status, disability or union activity, which has the effect of nullifying or impairing the treatment of a person in employment or occupation, or of preventing an employee from obtaining any benefit under a contract of service.

85.2 There shall be equal pay for work of equal value.

ARTICLE 86 SEXUAL HARASSMENT POLICY

a) The Authority and the Union strongly discourage any form of sexual harassment and agree that no employee shall be sexually harassed.

b) Sexual harassment shall include, but not be limited to:

- **i.** Any form of unwanted verbal, non-verbal or physical conduct of a sexual nature, with the purpose or effect of violating the dignity of a person and in particular, creating an intimidating, hostile, degrading, humiliating or offensive environment or as a basis for evaluation in making employment decisions affecting an individual.
- **ii.** Any unwelcome sexual advances, direct or indirect, including requests for sexual favors and other verbal or physical conduct of a sexual nature when submission to or rejection of such conduct is made or is threatened to be made, either explicitly or implicitly.

c) All incidents of sexual harassment shall be reported by the complainant to either a person in a supervisory capacity or the DHRA. The reporting of a sexual harassment incident constitutes a complaint.

d) No person shall be reprimanded or retaliated against in any way for initiating an inquiry or lodging a complaint in good faith regarding sexual harassment; any conduct constituting such a reprimand or retaliation is a violation of this agreement and is equally subject to disciplinary action under it.

e) Any person subjected to conduct perceived as a reprimand or retaliation for initiating an inquiry or lodging a complaint in good faith regarding sexual harassment shall promptly report all relevant information to the DHRA. The Authority is also committed to protecting the rights of any person against whom an allegation of sexual harassment is made.

f) Every Employee shall adhere to the Authority's Policy on Anti - Sexual Harassment indicated in **Schedule 9**

ARTICLE 87 - EXTRACURRICULAR AND RECREATION ACTIVITIES

The Authority will develop a program to cater for Extracurricular and recreation activities for its Employees, and will ensure that where practical, relevant facilities are established for the purpose.

SCHEDULE 1: REVISED SALARY STRUCTURE AS AT 3/2/2016

Band Sector a		Band Sector b		Band Sector c		Notch Size
Notch	Amount	Notch	Amount	Notch	Amount	
SLC1						
1	830,000	1	1,097,855	1	1,365,710	53,571
2	883,571	2	1,151,426	2	1,419,281	
3	937,142	3	1,204,997	3	1,472,852	
4	990,713	4	1,258,568	4	1,526,423	
5	1,044,284	5	1,312,139	5	1,579,994	
SCL 2						
1	900,000	1	1,178,570	1	1,457,140	55,714
2	955,714	2	1,234,284	2	1,512,854	
3	1,011,428	3	1,289,998	3	1,568,568	
4	1,067,142	4	1,345,712	4	1,624,282	
5	1,122,856	5	1,401,426	5	1,679,996	
SCL 3						
1	998,000	1	1,284,430	1	1,570,860	57,286
2	1,055,286	2	1,341,716	2	1,628,146	
3	1,112,572	3	1,399,002	3	1,685,432	
4	1,169,858	4	1,456,288	4	1,742,718	
5	1,227,144	5	1,513,574	5	1,800,004	
SCL 4						
1	1,093,000	1	1,395,500	1	1,698,000	60,500
2	1,153,500	2	1,456,000	2	1,758,500	
3	1,214,000	3	1,516,500	3	1,819,000	
4	1,274,500	4	1,577,000	4	1,879,500	
5	1,335,000	5	1,637,500	5	1,940,000	
SCL 5						
1	1,177,936	1	1,500,101	1	1,822,266	64,433
2	1,242,369	2	1,564,534	2	1,886,699	
3	1,306,802	3	1,628,967	3	1,951,132	
4	1,371,235	4	1,693,400	4	2,015,565	
5	1,435,668	5	1,757,833	5	2,079,998	
SCL 6						
1	1,303,318	1	1,636,238	1	1,969,158	66,584
2	1,369,902	2	1,702,822	2	2,035,742	
3	1,436,486	3	1,769,406	3	2,102,326	
4	1,503,070	4	1,835,990	4	2,168,910	
5	1,569,654	5	1,902,574	5	2,235,494	

Band Sector a		Band Sector b		Band Sector c		Notch Size
Notch	Amount	Notch	Amount	Notch	Amount	
SCL 7						
1	1,700,000	1	2,088,930	1	2,477,860	77,786
2	1,777,786	2	2,166,716	2	2,555,646	
3	1,855,572	3	2,244,502	3	2,633,432	
4	1,933,358	4	2,322,288	4	2,711,218	
5	2,011,144	5	2,400,074	5	2,789,004	
SCL 8						
1	2,070,000	1	2,535,750	1	3,001,500	93,150
2	2,163,150	2	2,628,900	2	3,094,650	
3	2,256,300	3	2,722,050	3	3,187,800	
4	2,349,450	4	2,815,200	4	3,280,950	
5	2,442,600	5	2,908,350	5	3,374,100	
SCL 9						
1	3,000,400	1	3,664,545	1	4,328,690	132,829
2	3,133,229	2	3,797,374	2	4,461,519	
3	3,266,058	3	3,930,203	3	4,594,348	
4	3,398,887	4	4,063,032	4	4,727,177	
5	3,531,716	5	4,195,861	5	4,860,006	
SCL 10						
1	4,250,000	1	5,175,895	1	6,101,790	185,179
2	4,435,179	2	5,361,074	2	6,286,969	
3	4,620,358	3	5,546,253	3	6,472,148	
4	4,805,537	4	5,731,432	4	6,657,327	
5	4,990,716	5	5,916,611	5	6,842,506	
SCL 11						
1	7,020,000	1	8,524,285	1	10,028,570	300,857
2	7,320,857	2	8,825,142	2	10,329,427	
3	7,621,714	3	9,125,999	3	10,630,284	
4	7,922,571	4	9,426,856	4	10,931,141	
5	8,223,428	5	9,727,713	5	11,231,998	
SCL 12						
1	9,259,800	1	11,224,155	1	13,188,510	392,871
2	9,652,671	2	11,617,026	2	13,581,381	
3	10,045,542	3	12,009,897	3	13,974,252	
4	10,438,413	4	12,402,768	4	14,367,123	
5	10,831,284	5	12,795,639	5	14,759,994	

Band Sector a		Band Sector b		Band Sector c		Notch Size
Notch	**Amount**	**Notch**	**Amount**	**Notch**	**Amount**	
SCL 13						
1	13,311,000	**1**	16,020,645	**1**	18,730,290	541,929
2	13,852,929	**2**	16,562,574	**2**	19,272,219	
3	14,394,858	**3**	17,104,503	**3**	19,814,148	
4	14,936,787	**4**	17,646,432	**4**	20,356,077	
5	15,478,716	**5**	18,188,361	**5**	20,898,006	
SCL 14						
1	15,973,200	**1**	19,224,915	**1**	22,476,630	650,343
2	16,623,543	**2**	19,875,258	**2**	23,126,973	
3	17,273,886	**3**	20,525,601	**3**	23,777,316	
4	17,924,229	**4**	21,175,944	**4**	24,427,659	
5	18,574,572	**5**	21,826,287	**5**	25,078,002	
EXEC 3						
1	17,600,000	1	23,100,000			1,100,000
2	18,700,000	2	24,200,000			
3	19,800,000	3	25,300,000			
4	20,900,000	4	26,400,000			
5	22,000,000	5	27,500,000			
EXEC 2						
1	20,000,000	1	26,250,000			1,250,000
2	21,250,000	2	27,500,000			
3	22,500,000	3	28,750,000			
4	23,750,000	4	30,000,000			
5	25,000,000	5	31,250,000			
EXEC 1B						
1	22,600,000	1	30,100,000			1,500,000
2	24,100,000	2	31,600,000			
3	25,600,000	3	33,100,000			
4	27,100,000	4	34,600,000			
5	28,600,000	5	36,100,000			
EXEC 1A						
1	25,459,900	1	33,459,900			1,600,000
2	27,059,900	2	35,059,900			
3	28,659,900	3	36,659,900			
4	30,259,900	4	38,259,900			
5	31,859,900	5	39,859,900			

SCHEDULE 2: SUBSISTENCE, SAFARI DAY AND WARM CLOTHING ALLOWANCE

Subsistence for Local and Overseas travel, safari Day and Warm Clothing Allowance shall be paid according to the rates detailed below:

Subsistence Allowance (per night)

LEVEL	Overnight Subsistence (Shs)	SDA (Shs)
1 – 3	120,000	15,000
4 – 6	120,000	20,000
7 – 9	120,000	25,000
10 - 12	150,000	30,000
13	180,000	35,000
14	220,000	40,000
Exec 3	220,000	45,000
Exec 2	250,000	45,000
Exec 1	250,000	55,000

Ground Transport Abroad and Transport to and from the Airport in Uganda

a) **Ground transport abroad**: An advance of USD 100 shall be paid to all employees who travel abroad on official duties to cover ground transport (not accountable).

b) Transport to and from the airport in Uganda

i) Entebbe based staff shall be entitled to Uganda shillings 50,000/-

ii) Kampala staff shall be entitled to Uganda shillings 100,000/-

PER DIEM RATES

SCL	Africa/Middle East	Europe/America/Far East
Exec 1	400	450
Exec 2	400	450
Exec 3	350	400
L 14	350	400
L 13	300	350
L12-10	250	300
L9-1	200	250

WARM CLOTHING ALLOWANCE:

When exigency of service requires an employee to travel to a place in the temperate and cold climatic regions, he /she shall be paid warm clothing allowance provided that the allowance shall be paid when travel is made during Autumn and winter that is October-March for regions in northern hemisphere and April-September for regions in southern hemisphere.

Warm clothing allowance is $300

The employees shall be paid warm clothing allowance only once in two consecutive years.

SCHEDULE 3: TRANSPORT ALLOWANCE

Employees who work under shift system will be entitled to the following transport re-imbursement fares:

	ROUTE	FARE (Shs)	RETURN FARE (Shs)	REMARK
1.	Kampala – Entebbe Airport	4,500/=	9,000/=	
2.	Kampala – Kawuku	2,500/=	5,000/=	
3.	Kitooro – Entebbe Airport	1,500/=	3,000/=	
4.	Kitooro – Bukku/Kigungu	3,000/=	6,000/=	
5.	Bus Driver: Kampala to M.o.W & T Old Port Bell road	1,500/= x 2	3,000/=	Week days
6.	Bus Driver: Kampala to M.o.W & T, Old Port Bell road	1,500//= x 4	6,000/=	Weekends
7	Upcountry stations	2500	5000	Per day worked

SCHEDULE 4: MILEAGE ALLOWANCE

Employees authorized to use their personal vehicles on official duty shall be paid mileage allowances according to the rates detailed below:

a) Mileage

MILEAGE RATES

Staff Category	Petrol Shs/km	Diesel Shs/km
Board members	2190	2190
Executive 1 – 3 & L 14	2140	2120
Level 13 – 12	1500	1490
Level 10 – 11	1230	1138
Level 7 – 9	1013	968
Level 4 – 6	871	871

b) Fuel Quantity amount per distance:

i. Kampala – Entebbe – Kampala : 10 litres per day

ii. Entebbe International Airport - Entebbe Town/
Kawuku - Entebbe International Airport : 5 litres per day

SCHEDULE 5: ALLOWANCES AND OTHER BENEFITS

1.	Leave allowance	100% (1 Month gross pay)
2.	Acting Allowance	22.5%
3.	Combined duty allowance	11.25%
4.	Mast climbing	4.5%
5.	Extra hours allowance	4.5%
6	Instructors allowance	Internal - 35,000 External – 80,000
7	Holiday Duty Allowance	25,000
8	Rating board	30,000
9	Central Negotiation Council	100,000
10	Task force/Committee appointed by Management allowance	50,000 per sitting
11	Skin scolding for open water diving treatment	100,000 per month
12	ATC Rating Allowance	12% for 1 & 2 ratings 15% for three ratings & above.
13	Calibration Allowance	50,000= Per day
14	Safety Action Group Allowance (SAGA)	50,000= Per day
15	Bridge Allowance to certified bridge handler (Air side)	Size of a notch
17	Disciplinary committee facilitation allowance	50,000= per sitting
18	ESSAT Allowance	50,000=
19	Bus Driver's Allowance	Equivalent of SDA

TRAINING ALLOWANCES

PARTIALLY SPONSORED COURSE OTHER THAN UCAA	50% PER DIEM
LONG TERM TRAINING	-FIRST 30 DAYS FULL PER DIEM -SUBSEQUENT 30 DAYS 50% PER DIEM -THEREAFTER $50 PER DAY
FULLY FUNDED COURSES	
EUROPE/USA/FAR EAST	$50 PER DAY
AFRICA AND MIDDLE EAST	$40 PER DAY

SCHEDULE 6: DISCIPLINARY AND APPELLANT AUTHORITIES

Statement showing the authority competent to suspend, award punishment and also the appellate authority in respect of all personnel serving in UCAA

SCL	Competent Authority to Suspend	Competent Authority to Award Punishment	Appellate Authority
Exec 1 to Exec 2	Minister	Minister/Board	Minister
Exec 3 to L14	Board	Director General	Board
L13	Management	Management	Board Committee on human resource and administration
L12– L10	Concerned Departmental Director/DHRA	Management Committee	Director General
L9 – L4	Concerned Departmental Director /DHRA	Management Committee	Director General
L3 – L1	Concerned Departmental Director /DHRA	Management Committee	Director General

Notwithstanding anything contained in this schedule, an authority which is higher than the competent authority can exercise any of the powers conferred upon the competent authority

SCHEDULE 7: HIV/AIDS POLICY

The actual and potential growth and impact of HIV/AIDS on people of productive and economically active age poses an enormous global and business challenge. Employees are critical to the success of the aviation business. The loss of an employee is not only a personal and family tragedy, but also results in direct and indirect loss to the Authority in terms of medical costs, retraining, recruitment and productivity. The Authority is committed to the protection and maintenance of its employee's health and wellbeing within affordable limits.

The objective of this HIV/AIDS policy is to minimize, monitor and manage the impact, spread and consequences of HIV/AIDS in as far as it affects the employees and the operations of the Authority.

The key elements of this policy are to:

(i) Provide health information to all employees on HIV/AIDS, its magnitude, impact and preventative measures.

(ii) Clearly define HIV/AIDS policies and procedures taking into account local practices, procedures, culture and legislation.

(iii) Implement non-discriminatory policies, procedures and practices in managing individuals who have HIV/AIDS.

(iv) Approach individuals who have HIV/AIDS in the same manner as those with any other progressive debilitating illness and with all the support this entails.

Non-Discriminatory Policies, Procedures and Practices:

Misconceptions and misinformation regarding HIV/AIDS can contribute to discriminatory management policies, practices and behaviors resulting in panic and poor employee morale and working relationships between employees and those infected with HIV/AIDS.

The Authority therefore recognizes a need to disseminate standard, consistent and factual information on the HIV/AIDS disease and to educate our employees to minimize and manage HIV/AIDS infection.

Education Programme and Dissemination of Information:

The Authority will develop and regularly disseminate information on the magnitude of the disease and developments in scientific research, especially those relating to prevention.

To implement this effectively, the Authority will distribute an HIV/AIDS Staff Handbook, Posters, Fliers and other media-based information to all employees and will encourage staff attendance on the "Staying Alive" awareness presentation.

All relevant information will be held centrally by the Human Resource Department accessible to all Managers, employees, and where possible employees' families.

Support for preventive programmes:

The Authority will actively support and identify reputable local and international Non Governmental Organizations (NGO's) and medical networks to contribute to our HIV/AIDS prevention and education programmes including counseling, awareness education and distribution of free condoms within the Authority premises. In addition the Authority will utilize its medical network to educate employees on the risks associated with Sexually Transmitted Diseases (STD's) and encourage affected individuals to seek complete treatment.

Managing HIV/AIDS at the workplace

Job Applicants:

The Authority is an Equal Opportunity Employer and will not use HIV testing when recruiting job candidates. The Authority will ensure that job candidates who are known to have HIV/AIDS are treated no differently from those who may have another life-threatening and non-contagious disease. Fitness to perform a job will be the only criterion that shall apply.

HIV Testing and Screening:

The Authority does not consider HIV testing and screening of employees to be necessary or desirable.

Confidentiality OF HIV/AIDS information:

The Authority considers medical information including HIV/AIDS status confidential, unless disclosure is required and only under the following circumstances.

- The information is legally required
- The employee's health is affecting their own and hence Authority's performance.
- Long employee absence necessitates management to obtain the employee's medical status with the employee's written permission.

In all the above circumstances disclosure on HIV/AIDS status should only be made with the written approval of the Human Resource Manager and only after obtaining a written authority from the individual concerned.

Should it become known in the Authority that an employee is HIV positive then Management should ensure the absolute confidentiality of this information and make every effort to protect that person from stigmatization and discrimination.

To ensure maintenance of confidentiality these policy and procedural statements should be implemented and communicated to all those who handle personnel information. Any unwanted disclosure by any employee of the Authority will be treated as an act of gross misconduct warranting disciplinary action.

Counseling of HIV/AIDS infected employees

The Authority recognizes that HIV/AIDS infected employees are vulnerable to discriminatory policies, practices and behaviors, and loss of training, promotion and career opportunities.

This can cause great distress and alienation.

The Authority regards any form of discrimination and harassment, directly or indirectly, towards HIV/AIDS infected employees as a gross misconduct warranting strict disciplinary action.

Harassment is any form of verbal or non-verbal behavior that is directed at the infected individual resulting in the individual feeling threatened, insecure or distressed.

Examples of harassment include:

- Offensive gestures and facial expressions
- Derogatory remarks, jokes and ridicule
- Invasive personal questions.
- Discriminatory behaviors and practices
- Unwarranted staring
- Offensive letters, memos, emails and publication of Patronizing comments and nicknames
- Making fun of the individual.

Discrimination of HIV/AIDS infected employees will not be condoned. This includes treating those affected differently or not applying a professional judgment in making personnel decisions.

Employees' involvement:

All employees, or their representatives, and particularly those infected by HIV/AIDS should be involved in the formulation and implementation of this policy.

Segregation and Isolation of HIV/AIDS infected employees:

No employee will be isolated, or segregated, within the Authority's premises on the grounds of being infected with HIV. Where an employee has a contagious disease as a result of HIV infection, they will be treated in exactly the same manner as if a non- HIV infected employee had contracted the infection.

HIV/AIDS and first aid:

The Authority is committed to maintaining a safe working environment for all its employees, customers and visitors in the working premises. The Authority will therefore take all reasonable and practical steps to ensure that:

- A representative number of employees in all functional units is trained to provide First Aid in cases of emergency including taking appropriate precautions to reduce the risk of transmitting blood borne infections, including HIV/AIDS and Hepatitis B.
- First Aid facilities and particularly all necessary equipment for dealing with spillage of body fluids are fully stocked and replenished regularly. This equipment will include disposable gloves and aprons,

suitable bleaches/disinfectants, disposable toweling and impervious plastic bags for disposal of used materials.

Sick Leave and Absence through HIV/AIDS illness

Employees who are prevented from performing their duties due to HIV/AIDS illness will be granted sick leave to regain their health. Sick leave is allowed under the terms and conditions in **Section 45.**

Redeployment and termination of HIV/AIDS infected employees

Where the Authority is advised by a medical authority that an employee is unfit to carry out normal duties, and there are no grounds to indicate that improvement is likely in the foreseeable future, then an interview must be held with the employee to explore alternative future employment positions including:

- Re-deployment to lighter duties
- Alternative employment terms and condition including shorter daily or weekly working hours.
- Termination on capability and medical grounds

In exploring the above alternatives the following guidelines must be observed:

- A qualified medical opinion is obtained before any final decision is taken
- Alternatives are discussed and explored gradually with the employee first being advised that their absence from work places their employment at risk.
- A date to terminate is set if there is no return to work
- All interviews and actions agreed are confirmed in writing to the employee
- Management must ensure compliance with policies and procedures on termination, deployment, sick leave, absenteeism and grievance policies and procedures

SCHEDULE 8: HEALTH & SAFETY POLICY

It shall be the duty of the Authority:

a) To take all reasonable steps to ensure the health and safety of all employees at work and to take all necessary steps to implement such a policy.
b) To promote the safety and well-being of its employees.
c) To build a positive and healthy work environment.
d) To ensure that the working environment is free from any hazards.
e) To provide appropriate information, training and supervision necessary for the safety and health of employees.
f) To provide adequate protective equipment to prevent risk of accidents.
g) To ensure the health and safety of other people who may be affected by the work activity and reasonable steps will be taken by all concerned to ensure that this duty is observed

The employee shall:

(a) Co-operate with the Authority in all measures to minimize risks to health and safety at work.
(b) Co-operate with the Authority to ensure that this policy is effective and to offer all necessary assistance to ensure health and safety at work of all employees

(b) Report to the immediate supervisor any situation which he or she believes to present a serious danger to his or her life or any other person.

Protective Equipment

All employees working in hazardous environment that may expose them to injury shall be provided with protective wear and equipment.

Group Personal Accident Cover

The Authority shall provide a twenty four (24) hour cover against any injury to any of its employee while on duty. The benefits of this scheme shall be in line with the provisions of the Workers Compensation Act.

Workstations

The workplace must be kept clean and tidy, with rubbish and discarded materials carefully placed in the receptacles provided. Proper attention must be paid to hygiene.

All materials must be properly and safely used and when not in use properly and safely secured. Care must be taken to ensure that the workplace is not hazardous either to employees or to third parties including trespassers.

Access

Means of access to and egress from the workplace must only be used for the purpose for which they are provided. No employee must tamper with any means of access to or egress from the workplace. Any means of access to or egress from the workplace, which is in a dangerous or unsuitable condition for use must be reported by employees to the employee's immediate supervisor.

Carrying heavy items

Lifting or carrying items such as machinery, heavy bundles of paper or files should be done carefully. Employees should ask for assistance if there is any danger of strain. Heavy objects should be lifted in the correct manner without bending the back.

Fire

a) Employees should ensure that they are familiar with the position of the nearest firefighting equipment, alarms and emergency exits. They should ensure that they understand how to operate such equipment. In particular, employees should use electric appliances with caution and to keep flammable materials, in particular paper, away from sources of heat. Employees should report any faulty electric cable or flex immediately. Emergency exits, stairs, corridors and doorways should not be abstracted. Fire doors should always be kept closed.

b) Employees should be fully conversant with the fire drill and be aware of the nearest fire exit and assembly points. Employees should leave the building quickly and in an orderly fashion following the correct route.

Electrical Equipment

a) Any equipment in a dangerous or worn-out condition must be reported by the employee to the employee's immediate supervisor. All electrical equipment which does not require continuous operation should be switched off when not in use and plugs removed from socket outlets. Employees should never use equipment that is suspected to be faulty, or where the cable or flex is damaged or connections are loose. Any faults should be immediately reported to the employee's immediate superior.

b) Employees should not attempt to repair nor interfere with electrical equipment or do wiring by themselves; neither should they use dual or other socket outlets unless these have been properly authorized by an electrical engineer.

Floors, Ladders, Steps and stairs:

a) Cables and wires should not be permitted to trail across the floor where people may be passing, unless a covering is provided.

b) Employees should take extra care on newly polished or wet floors.

c) Where ladders or steps are used to reach above normal height, employees should ensure that they are firmly based and secure. Where necessary, assistance should be sought to prevent them slipping. Employees should exercise care on stairs and handrails should be used.

Accidents or illnesses at work

a) Any accident or illness occurring on the work premises should be reported to the employees' immediate supervisor, who should ensure that all details are entered in the accident report book. It is important that all injuries however slight should be reported.

b) Employees should ensure that they know the names and locations of the persons designated to take charge of the first aid cabinet and to render first aid in an emergency. In an emergency, speed is very crucial and an ambulance should be called in.

General

The attention of all employees is drawn to the safety Rules and Procedures as disciplinary action will be taken against any such employee who violates these Rules and Procedures.

The Authority will consult with the employees periodically to ascertain what measures should be taken to increase awareness of health and safety and to ensure that all necessary measures are taken to make this policy effective.

The Authority will take such measures as may be necessary to ensure proper training, and supervision and instructions of all employees in matters pertaining to their health and safety and to provide any necessary information.

SCHEDULE 9: SEXUAL HARASSMENT POLICY

It is the Authority's policy that all employees are responsible for assuring that the work place is free from sexual harassment. The Authority does not condone or excuse sexual harassment of any kind. Sexual harassment by management and supervisory staff, co-workers, non-employees over whom the Authority exercises some measure of control will not be tolerated on or off work premises.

Because of the Authority's strong disapproval of offensive or inappropriate sexual behavior with respect to the work place, all employees must avoid any action or conduct, which could be viewed as sexual harassment. Therefore, under this policy, the following acts are specifically prohibited:

- Granting or denying job benefits based on receptivity of sexual advances, threatening or insinuating either expressly or implying that an employee's refusal to submit to sex would deny him /her a job.
- Sexual advances, requests for sexual favors, and verbal or physical conduct of a sexual harassing nature;
- Intimate relationships between supervisory and subordinate employees on or off work premises, which may affect the supervisors' treatment of the employee with respect to his or her terms and conditions of employment.
- A working environment of unwelcome sexual conduct that has the purpose or effect of unreasonably interfering with an affected person's work performance or creating an intimidating, hostile or offensive work environment: and
- Sexual slurs, vulgar jokes, display of sexually explicit pictures, or other sexually offensive conduct.

Any employee who has a complaint of sexual harassment with respect to the workplace by anyone including supervisors, co-workers, visitors, contractors, customers or any other person over whom the Authority exercises some measure of control should immediately bring the problem to the attention of the Director Human Resources.

All complaints will be promptly handled on a confidential basis. The DHRA will retain confidential documentation of all allegations and investigations and will take appropriate corrective action to remedy all violations of this policy.

Corrective action may include disciplinary action up to and including termination of employment or termination of the business relationship for persons found to have engaged in sexual harassment.

SCHEDULE 10: COMPETENT AUTHORITIES FOR EXERCISING POWERS RELATING TO HUMAN RESOURCE AND ADMINISTRATION MATTERS

NO.	MATTER	STAFF CATEGORY	COMPETENT AUTHORITY
1.	Appointment	EXEC 1 & 2 EXEC 3 & L14 L13 L12 – L1	Minister Board Board Committee on HR and Admin. Management Committee
2.	Creation of Posts	EXEC 1 & 2 EXEC 3 – L1	As per UCAA Act Board
3.	Revisions of Designations	EXEC 3 – L1	Board
4.	Training Inland and Overseas	EXEC 1 & 2 EXEC 3 – L1	Board Management Committee
5.	Determination of Probations	EXEC 3 & L14 L13 L12 -L1	Board Board Committee on HR and Admin. Management Committee
6.	Confirmation	EXEC 3 & L14 L13 L12 -L1	Board Board Committee on HR and Admin. Management Committee.
7.	Termination	EXEC 3 & L14 L13 L12 -L1	Board Board Committee on HR and Admin. Management Committee.
8.	Promotion/Acting Appointment	EXEC 1 & 2 EXEC 3 & L14 L13	Minister Board Board Committee on HR and Admin.

NO.	MATTER	STAFF CATEGORY	COMPETENT AUTHORITY
		L12 -L1	Management Committee.
9.	Fixation of pay on initial Appointment	EXEC 1 & 2 EXEC 3 & L14 L13 L12 -L1	Minister Board Board Committee on HR and Admin. Management Committee.
10.	Fixation of pay on promotion	EXEC 3 & L14 L13 L12 -L1	Management Committee.
11.	Annual Increament	EXEC 1 & 2 EXEC 3 & L14 L13 L12- L1	Board Board Board Committee on HR and Admin. Management Committee
12.	Additional Advance Increment	EXEC 1 & 2 EXEC 3 & L14 L13 L12 -L1	Minister Board Board Committee on HR and Admin. Management Committee.
13.	Official Travel Inland & Overseas	EXEC 1 EXEC 2 – L1	Board Management Committee
14.	Transfers	EXEC 1-3 &14 L13 L12 - L1	Board Board Committee on HR and Admin. Management Committee
15.	Grant of all kind of leave / Leave Reschedule	EXEC 1 EXEC 2,3 - L1	Minister / Board Management Committee.
16.	Leave *Allowance**	EXEC 1 - L1	Management Committee

NO.	MATTER	STAFF CATEGORY	COMPETENT AUTHORITY
17.	Early Retirement other than mandatory retirement	EXEC 1 & 2 EXEC 3&14 L13 L12 -L1	Minister Board Board Committee on HR and Admin. Management Committee.
18.	Termination of Service	EXEC 1 & 2 EXEC 3 - L14 L13 L12 - L1	Minister Board Board Committee on HR and Admin. Management Committee.
19.	Resignation	EXEC 1 & 2 EXEC 3 - L14 L13 L12 - L1	Minister Board Board Committee on HR and Admin. Management Committee.
20.	Abandonment of Post	EXEC 1 EXEC 2&3, L14 L13-L1	Board Board Management Committee.
21.	Sanction of Overtime/Extra hours	L12 – L11	Management Committee.
22.	Misconducts and Punishment	EXEC 1 & EXEC 2 EXEC 3&L14 L13 L12– L1	Minister Board Board Committeeon HR and Admin. Management Committee.

COMMENCEMENT OF THIS AGREEMENT

This Agreement that comes into force on 1st day of July 2022 shall remain in force until further amended.

IN WITNESS WHEREOF the representative of the parties hereto have set their signatures and seals this ..... day of 2022

For and on behalf of UCAA:

.....
Fred K. Bamwesigye
DIRECTOR GENERAL

.....
Sabah Ahmed
DIRECTOR HUMAN RESOURCE & ADMINISTRATION

.....
Olive Birungi Lumonya
CHAIRPERSON CNC

For and on behalf of ATGWU:

…….....
Stephen Abima
GENERAL SECRETARY

.....
Jane Atto
SECTION SECRETARY

.....
John Mark Mwanika
ALTERNATE CHAIRPERSON CNC

.....
Dennis Oloro
CHIEF SHOP STEWARD UCAA